

COMMONWEALTH OF MASSACHUSETTS

PLYMOUTH, SS.

SUPERIOR COURT DEPARTMENT
CASE NO.

Lakeview Loan Servicing, LLC,

Plaintiff

v.

**Carlie Javier; Enrique Javier; The Secretary
of Housing and Urban Development, their
successors and assigns.**

Defendants

COMPLAINT

Jurisdiction

The Superior Court has jurisdiction over this matter pursuant to M.G.L. Ch. 212 § 3, M.G.L. Ch. 212 § 4, M.G.L. Ch. 244 § 8, and M.G.L. Ch. 244 §11, et. seq. The property locus is 37 Birch Hill Rd, Bridgewater, MA 02324.

Parties

1. Plaintiff Lakeview Loan Servicing, LLC (“Lakeview”) has a usual place of business 4425 Ponce De Leon Blvd, Coral Gables, FL 33146.
2. Defendant Carlie Javier is an individual who, upon information and belief, owns and resides at 37 Birch Hill Rd, Bridgewater, MA 02324.
3. Defendant Enrique Javier is an individual who, upon information and belief, owns and resides at 37 Birch Hill Rd, Bridgewater, MA 02324.

4. Defendant The Secretary of Housing and Urban Development, their successors and assigns (“HUD”), is a government agency which has a last known usual place of business ATTN: Family Notes Branch, 451 Seventh Street, SW, Washington, DC 20410.

Facts

5. Ace Investment, LLC executed and delivered a Quit Claim Deed for the real property located at 37 Birch Hill Rd, Bridgewater, MA 02324 (the “Property”) to Enrique Javier and Carline Javier (the “Javiers”), as tenants by the entirety which deed was executed on October 25, 2019 and recorded at the Plymouth County Registry of Deeds as in Book 51850 at Page 129 (the “Deed”). A true and accurate copy of the Deed is attached as **Exhibit A**.
6. Carlie Javier executed and delivered a Note dated October 25, 2019 to CrossCountry Mortgage, LLC in the principal amount of Five Hundred Eighty-Four Thousand Two Hundred Twenty-Three-Two Dollars and No Cents (\$584,223.00) (“Note”). The Note was subsequently endorsed into Plaintiff. A true and accurate copy of the endorsed Note is attached as **Exhibit B**.
7. As security for the Note, The Javiers executed, granted and delivered a first mortgage in the amount of \$584,223.00 containing a statutory power of sale to Mortgage Electronic Registration Systems, Inc. (“MERS”), solely as nominee for CrossCountry Mortgage, LLC executed on October 25, 2019, recorded at the Plymouth County Registry of Deeds in Book 51850 at Page 131, and encumbering the Property (“Mortgage”). A true and accurate copy of the Mortgage is attached in **Exhibit C**.

8. MERS assigned the Mortgage to Lakeview by Corporate Assignment executed on April 30 2020 and registered in the Plymouth County Registry of Deeds in Book 52692 at Page 166 ("Assignment"). A true and accurate copy of Assignment is attached in **Exhibit D**.

9. The Mortgage is secured by the Property located in the Town of Bridgewater, Massachusetts, and is more particularly described as follows:

That certain parcel of land, with the buildings thereon in Bridgewater, Plymouth County, Massachusetts, situated on the westerly side of Lake Nippineckit bounded and described as follows:

Beginning at a point a corner formed by the junction of remaining land of Florence M. Reed, land recently conveyed to Pickard by Florence M. Reed and also land conveyed by the said Florence M. Reed to Fitzgerald, being the westerly corner of the herein described lot of land; thence by said Pickard's southerly line N. 86° 45 E. 105.57 feet to a turn; thence S. 80° 16 E. 125 feet more or less to the westerly line of Lake Nippineckit; thence by said Lake southerly 90 feet more or less to a corner of land of said Fitzgerald; thence by said Fitzgerald land N. 63° 31 W. 226 feet more or less to the point of beginning.

The above premises are subject to all easements of record insofar as the same may be in full force and effect.

10. Lakeview is the current holder of the Note and Mortgage.

11. HUD recorded a junior mortgage in the amount of \$89,663.76, as a lienholder of The Javiers, registered in the Plymouth County Registry of Deeds in Book 56119 at Page 192.

A true and accurate copy of the junior mortgage is attached in **Exhibit E**.

12. HUD recorded an additional junior mortgage in the amount of \$16,807.00, as a lienholder of The Javiers, registered in the Plymouth County Registry of Deeds in Book 58475 at Page 79. A true and accurate copy of the junior mortgage is attached in **Exhibit F**.

13. HUD recorded an additional junior mortgage in the amount of \$20,545.45, as a lienholder of The Javiers, registered in the Plymouth County Registry of Deeds in Book 58955 at Page 39. A true and accurate copy of the junior mortgage is attached in **Exhibit G**.

14. HUD recorded an additional junior mortgage in the amount of \$44,896.21, as a lienholder of The Javiers, registered in the Plymouth County Registry of Deeds in Book 59377 at Page 336. A true and accurate copy of the junior mortgage is attached in **Exhibit H**.
15. No person or entity other than the parties hereto appears of record in the Plymouth County Registry of Deeds to have any interest in said Property.
16. On or about December 18, 2024, Lakeview, or its predecessor in interest, or authorized servicer of the Mortgage, or anyone holding under the Mortgage, or its attorneys, sent a Notice of Default and Right to Cure pursuant to G. L. c. 244, s. 35A and Notice of Right to Request a Modified Mortgage Loan pursuant to G. L. c. 244, s. 35B, via certified and regular mail. A true and accurate copy of Notice of Default and Right to Cure and Notice of Right to Request a Modified Mortgage Loan attached in **Exhibit I**.
17. On or about November 6, 2025, Lakeview, or its predecessor in interest, or authorized servicer of the Mortgage, or anyone holding under the Mortgage, or its attorneys, sent a Notice of Acceleration of the Mortgage Loan pursuant to the notice and default provisions of the Mortgage. A true and accurate copy of the notice of acceleration is attached as **Exhibit J**.
18. Lakeview, or its predecessor in interest, or authorized servicer of the Mortgage, or anyone holding under the Mortgage, or its attorneys, was authorized to send Notices of Default and Notice of Acceleration in compliance with the notice and default provisions of the Mortgage.

COUNT I

19. Lakeview realleges and reaffirms the allegations set forth in paragraphs 1-18 as if restated herein.

20. The Javiers, as the present owners, are the owners of the equity of redemption of the Property.

21. The Javiers are in default in the performance of the terms and conditions of the Mortgage, under paragraph 9(a) of the Mortgage.

22. Lakeview is entitled to foreclose the Mortgage, in full or partial satisfaction of the Javiers obligations in connection with the Note and or Mortgage pursuant to their terms and applicable law, under paragraph 22 of the Mortgage.

23. Lakeview is entitled to foreclose the Mortgage by invoking the Statutory Power of Sale pursuant to paragraph 22 of the terms of the Mortgage.

24. The interests of all defendants in and to the Property are subordinate and subject to the Mortgage.

25. Upon examination of the public records, there are no other parties with a mortgage, lien, encumbrance, or other equitable interest with respect to the Property.

26. There are no persons having any interest of ownership who are in the Military Service of the United States of America or otherwise entitled to the relief and benefits provided by the Act of Congress known as the Servicemembers Civil Relief Act, 50 U.S.C. §3901 et seq, as amended. A true and accurate copy of the Department of Defense Manpower Data Center Status Report is attached as **Exhibit K**.

WHEREFORE, Plaintiff prays that the following relief enter:

1. Order that the Javiers are in default of the terms and conditions of the Note or Mortgage;
2. Order that the notice of default provisions of the Mortgage were strictly complied with prior to commencement of this action;

3. Order that the Javiers are not in the Military Service of the United States of America or otherwise entitled to the relief and benefits provided by the Act of Congress known as the Servicemembers Civil Relief Act, 50 U.S.C. §3901 et seq, as amended;
4. Enter Conditional Judgment pursuant to M.G.L. Ch. 244 § 3 authorizing Lakeview to foreclose the Mortgage registered with the Plymouth County Registry of Deed in Book 51850 at Page 131, by invoking the Statutory Power of Sale and entry for possession in accordance with M.G.L. Ch. 244 § 1 through § 11, inclusive;
5. After filing of a Report of Sale, confirm the acts of Lakeview done and performed under the authority of the Conditional Judgment by entering a Final Decree confirming the foreclosure sale pursuant to M.G.L. Ch. 244 §12;
6. Order that any Defendants holding a lien or liens attached to the Property that fail to appear or file an answer in this action shall result in a waiver of any statutory or other applicable redemption period(s);
7. Order that, upon payment of all required fees, an attested copy of the Conditional Judgment and Final Decree shall be recorded at the Plymouth County Registry of Deeds; and
8. Grant other such relief as this Honorable Court deems reasonable and just.

Plaintiff
By its attorney

/s/ Jason MacKeen
Jason MacKeen, Esq. 696588
Orlans Law Group PLLC
PO Box 540540
Waltham MA 02454
(781) 790-7800

EXHIBIT A

5 feet
Lake

MASSACHUSETTS QUITCLAIM DEED BY

Property Address: 37 Birch Hill Road, Bridgewater, MA 02324

Ace Investment, LLC, a Massachusetts limited liability company having a usual place of business at 1893 Old Plymouth Street, Bridgewater, MA 02324, for full consideration paid of Five Hundred Ninety Five Thousand (US \$595,000.00) Dollars

grant to Enrique Javier and Carrie Javier, husband and wife, as tenants by the entirety 37 Birch Hill Road, Bridgewater, MA 02324

with quitclaim covenants

That certain parcel of land, with the buildings thereon in Bridgewater, Plymouth County, Massachusetts, situated on the westerly side of Lake Nippineckit, bounded and described as follows:

Beginning at a point a corner formed by the junction of remaining land of Florence M. Reed land recently conveyed to Pickard by Florence M. Reed and also land conveyed by the said Florence M. Reed to Fitzgerald being the westerly corner of the herein described lot of land thence by said Pickard's southerly line N. 86° 45' E. 105.57 feet to a turn; thence S. 80° 16' E. 12 more or less to the westerly line of Lake Nippineckit; thence by said southerly 90 feet more or less to a corner of land of said Fitzgerald; the said Fitzgerald land N. 63° 31' W. 226 feet more or less to the point of beginning.

The above premises are subject to all easements of record insofar as the same may be in full force and effect.

Being the same premises conveyed to the herein named grantor(s) by deed recorded with Plymouth County Registry of Deeds in Book 41615, Page 310.

Witness my hand and seal this 25th day of October, 2019.

Ace Investment, LLC

By: [Signature]
Charles T. Efremidis, Manager

COMMONWEALTH OF MASSACHUSETTS

County of

On this 25th day of October, 2019, before me, the undersigned notary public, personally appeared Charles T. Efremidis, who proved to me through satisfactory evidence of identification, which was MADISONVILLE, to be the person whose name is signed on the preceding or attached document, and acknowledged to me that he signed it voluntarily for its stated purpose on behalf of the Ace Investment, LLC.



[Signature]
Notary Public Janine M. Cicchesi
My Commission Expires: 11/11/23

EXHIBIT B

1. BORROWER'S PROMISE TO PAY

In return for a loan that I have received, I promise to pay U.S. **\$584,223.00** (this amount is called "Principal"), plus interest, to the order of the Lender. The Lender is **CrossCountry Mortgage, LLC, a Limited Liability Company.**

I will make all payments under this Note in the form of cash, check or money order.

I understand that the Lender may transfer this Note. The Lender or anyone who takes this Note by transfer and who is entitled to receive payments under this Note is called the "Note Holder."

2. INTEREST

Interest will be charged on unpaid principal until the full amount of Principal has been paid. I will pay interest at a yearly rate of **3.750 %**.

The interest rate required by this Section 2 is the rate I will pay both before and after any default described in Section 6(B) of this Note.

3. PAYMENTS

(A) Time and Place of Payments

I will pay principal and interest by making a payment every month.

I will make my monthly payment on the **1st** day of each month beginning on **December 1, 2019**.

I will make these payments every month until I have paid all of the principal and interest and any other charges described below that I may owe under this Note. Each monthly payment will be applied as of its scheduled due date and will be applied to interest and any other items in the order described in the Security Instrument before Principal. If, on **November 1, 2049**, I still owe amounts under this Note, I will pay those amounts in full on that date, which is called the "Maturity Date."

I will make my monthly payments at **6850 Miller Road
Brecksville, OH 44141**

or at a different place if required by the Note Holder.

(B) Amount of Monthly Payments

My monthly payment will be in the amount of U.S. **\$2,705.63**.

4. BORROWER'S RIGHT TO PREPAY

I have the right to make payments of Principal at any time before they are due. A payment of Principal only is known as a "Prepayment." When I make a Prepayment, I will tell the Note Holder in writing that I am doing so. I may not designate a payment as a Prepayment if I have not made all the monthly payments due under the Note.

I may make a full Prepayment or partial Prepayments without paying a Prepayment charge. The Note Holder will use my Prepayments to reduce the amount of Principal that I owe under this Note. However, the Note Holder may apply my Prepayment to the accrued and unpaid interest on the Prepayment amount, before applying my Prepayment to reduce the Principal amount of the Note. If I make a partial Prepayment, there will be no changes in the due date or in the amount of my monthly payment unless the Note Holder agrees in writing to those changes.

5. LOAN CHARGES

If a law, which applies to this loan and which sets maximum loan charges, is finally interpreted so that the interest or other loan charges collected or to be collected in connection with this loan exceed the permitted limits, then: (a) any such loan charge shall be reduced by the amount necessary to reduce the charge to the permitted limit; and (b) any sums already collected from me which exceeded permitted limits will be refunded to me. The Note Holder may choose to make this refund by reducing the Principal I owe under this Note or by making a direct payment to me. If a refund reduces Principal, the reduction will be treated as a partial Prepayment.

6. BORROWER'S FAILURE TO PAY AS REQUIRED

(A) Late Charge for Overdue Payments

If the Note Holder has not received the full amount of any monthly payment by the end of **15** calendar days after the date it is due, I will pay a late charge to the Note Holder. The amount of the charge will be **3.000 %** of my overdue payment of principal and interest. I will pay this late charge promptly but only once on each late payment.

(B) Default

If I do not pay the full amount of each monthly payment on the date it is due, I will be in default.

(C) Notice of Default

If I am in default, the Note Holder may send me a written notice telling me that if I do not pay the overdue amount by a certain date, the Note Holder may require me to pay immediately the full amount of Principal which has not been paid and

Any notice that must be given to the Note Holder under this Note will be given by delivering it or by mailing it by first class mail to the Note Holder at the address stated in Section 3(A) above or at a different address if I am given a notice of that different address.

8. OBLIGATIONS OF PERSONS UNDER THIS NOTE

If more than one person signs this Note, each person is fully and personally obligated to keep all of the promises made in this Note, including the promise to pay the full amount owed. Any person who is a guarantor, surety or endorser of this Note is also obligated to do these things. Any person who takes over these obligations, including the obligations of a guarantor, surety or endorser of this Note, is also obligated to keep all of the promises made in this Note. The Note Holder may enforce its rights under this Note against each person individually or against all of us together. This means that any one of us may be required to pay all of the amounts owed under this Note.

9. WAIVERS

I and any other person who has obligations under this Note waive the rights of Presentment and Notice of Dishonor. "Presentment" means the right to require the Note Holder to demand payment of amounts due. "Notice of Dishonor" means the right to require the Note Holder to give notice to other persons that amounts due have not been paid.

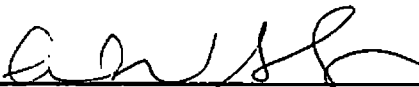
10. UNIFORM SECURED NOTE

This Note is a uniform instrument with limited variations in some jurisdictions. In addition to the protections given to the Note Holder under this Note, a Mortgage, Deed of Trust, or Security Deed (the "Security Instrument"), dated the same date as this Note, protects the Note Holder from possible losses which might result if I do not keep the promises which I make in this Note. That Security Instrument describes how and under what conditions I may be required to make immediate payment in full of all amounts I owe under this Note. Some of those conditions are described as follows:

If all or any part of the Property or any Interest in the Property is sold or transferred (or if Borrower is not a natural person and a beneficial interest in Borrower is sold or transferred) without Lender's prior written consent, Lender may require immediate payment in full of all sums secured by this Security Instrument. However, this option shall not be exercised by Lender if such exercise is prohibited by Applicable Law.

If Lender exercises this option, Lender shall give Borrower notice of acceleration. The notice shall provide a period of not less than 30 days from the date the notice is given in accordance with Section 14 within which Borrower must pay all sums secured by this Security Instrument. If Borrower fails to pay these sums prior to the expiration of this period, Lender may invoke any remedies permitted by this Security Instrument without further notice or demand on Borrower.

WITNESS THE HAND(S) AND SEAL(S) OF THE UNDERSIGNED.



CARLIE JAVIER

(Seal)

Lender: CrossCountry Mortgage, LLC
NMLS ID: 3029
Loan Originator: Jennifer Morrison
NMLS ID: 36462

Pay To The Order Of

Without Recourse
Lakeview Loan Servicing, LLC

BY: 
Mary Schroeder, Vice President

[Sign Original Only]

ALLONGE

Loan Number: [REDACTED]

Loan Date: 10/25/2019

Borrower(s): **Carlie Javier**

Property Address: **37 Birch Hill Rd Bridgewater, MA 02324**

Principal Balance: **584,223.00**

PAY TO THE ORDER OF

Without Recourse

LAKEVIEW LOAN SERVICING LLC

Company Name: CrossCountry Mortgage, LLC, A Limited Liability Company

By: [Signature]

Kristopher Stott, Collateral Specialist

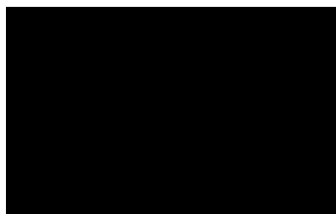


EXHIBIT C

Borrower is the mortgagor under this Security Instrument.

(C) "MERS" is Mortgage Electronic Registration Systems, Inc. MERS is a separate corporation that is acting solely as a nominee for Lender and Lender's successors and assigns. MERS is the mortgagee under this Security Instrument. MERS is organized and existing under the laws of Delaware, and has an address and telephone number of P.O. Box 2026, Flint, MI 48501-2026, tel. (888) 679-MERS.

(D) "Lender" is CrossCountry Mortgage, LLC.

Lender is a Limited Liability Company,
under the laws of Delaware.

organized and existing

Lender's address is 6860 Miller Road, Brecksville, OH 44141.

(D-1) "Mortgage Broker" is NO MORTGAGE BROKER

MASSACHUSETTS-Single Family-1/01 (based on Fannie Mae/Freddie Mac Form 3022 rev. 10/16)

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to the value and/or condition of the Property.

(N) "Mortgage Insurance" means insurance protecting Lender against the nonpayment of, or default on, the Loan.

(O) "Periodic Payment" means the regularly scheduled amount due for (i) principal and interest under the Note, plus (ii) any amounts under Section 3 of this Security Instrument.

(P) "RESPA" means the Real Estate Settlement Procedures Act (12 U.S.C. §2601 et seq.) and its implementing regulation, Regulation X (12 C.F.R. Part 1024), as they might be amended from time to time, or any additional or successor legislation or regulation that governs the same subject matter. As used in this Security Instrument, "RESPA" refers to all requirements and restrictions that are imposed in regard to a "federally related mortgage loan" even if the Loan does not qualify as a "federally related mortgage loan" under RESPA.

(Q) "Secretary" means the Secretary of the United States Department of Housing and Urban Development or his designee.

(R) "Successor in Interest of Borrower" means any party that has taken title to the Property, whether or not that party has assumed Borrower's obligations under the Note and/or this Security Instrument.

TRANSFER OF RIGHTS IN THE PROPERTY

This Security Instrument secures to Lender: (i) the repayment of the Loan, and all renewals, extensions and modifications of the Note; and (ii) the performance of Borrower's covenants and agreements

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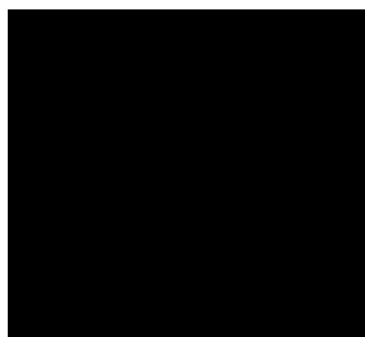
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Borrower shall also pay funds for Escrow Items pursuant to Section 3. Payments due under the Note and this Security Instrument shall be made in U.S. currency. However, if any check or other instrument received by Lender as payment under the Note or this Security Instrument is returned to Lender unpaid, Lender may require that any or all subsequent payments due under the Note and this Security Instrument be made in one or more of the following forms, as selected by Lender: (a) cash, (b) money order, (c) certified check, bank check, treasurer's check or cashier's check, provided any such check is drawn upon an institution whose deposits are insured by a federal agency, instrumentality, or entity, or (d) Electronic Funds Transfer.

Payments are deemed received by Lender when received at the location designated in the Note or at such other location as may be designated by Lender in accordance with the notice provisions in Section 14. Lender may return any payment or partial payment if the payment or partial payments are insufficient to bring the Loan current. Lender may accept any payment or partial payment insufficient to bring the Loan current, without waiver of any rights hereunder or prejudice to its rights to refuse such payment or partial payments in the future, but Lender is not obligated to apply such payments at the time such payments are accepted. If each Periodic Payment is applied as of its scheduled due date, then Lender need not pay interest on unapplied funds. Lender may hold such unapplied funds until Borrower makes payment to bring the Loan current. If Borrower does not do so within a reasonable period of time, Lender shall either apply such funds or return them to Borrower. If not applied earlier, such funds will be applied to the outstanding principal balance under the Note immediately prior to foreclosure. No

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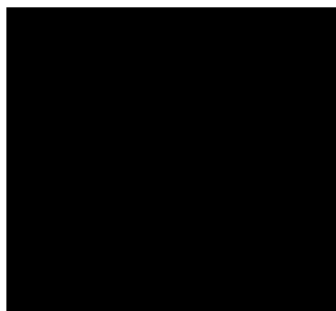
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the time specified under RESPA, Lender shall not charge Borrower for holding and applying the Funds, annually analyzing the escrow account, or verifying the Escrow Items, unless Lender pays Borrower interest on the Funds and Applicable Law permits Lender to make such a charge. Unless an agreement is made in writing or Applicable Law requires interest to be paid on the Funds, Lender shall not be required to pay Borrower any interest or earnings on the Funds. Borrower and Lender can agree in writing, however, that interest shall be paid on the Funds. Lender shall give to Borrower, without charge, an annual accounting of the Funds as required by RESPA.

If there is a surplus of Funds held in escrow, as defined under RESPA, Lender shall account to Borrower for the excess funds in accordance with RESPA. If there is a shortage of Funds held in escrow, as defined under RESPA, Lender shall notify Borrower as required by RESPA, and Borrower shall pay to Lender the amount necessary to make up the shortage in accordance with RESPA, but in no more than 12 monthly payments. If there is a deficiency of Funds held in escrow, as defined under RESPA, Lender shall notify Borrower as required by RESPA, and Borrower shall pay to Lender the amount necessary to make up the deficiency in accordance with RESPA, but in no more than 12 monthly payments.

Upon payment in full of all sums secured by this Security Instrument, Lender shall promptly refund to Borrower any Funds held by Lender.

4. **Charges; Liens.** Borrower shall pay all taxes, assessments, charges, fines, and impositions attributable to the Property which can attain priority over this Security Instrument, leasehold payments

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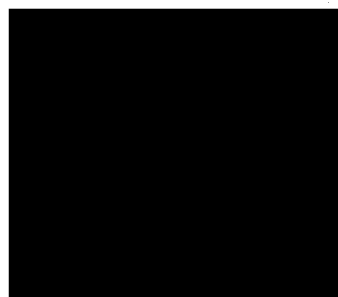
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shall be applied to restoration or repair of the Property, if the restoration or repair is economically feasible and Lender's security is not lessened. During such repair and restoration period, Lender shall have the right to hold such insurance proceeds until Lender has had an opportunity to inspect such Property to ensure the work has been completed to Lender's satisfaction, provided that such inspection shall be undertaken promptly. Lender may disburse proceeds for the repairs and restoration in a single payment or in a series of progress payments as the work is completed. Unless an agreement is made in writing or Applicable Law requires interest to be paid on such insurance proceeds, Lender shall not be required to pay Borrower any interest or earnings on such proceeds. Fees for public adjusters, or other third parties, retained by Borrower shall not be paid out of the insurance proceeds and shall be the sole obligation of Borrower. If the restoration or repair is not economically feasible or Lender's security would be lessened, the insurance proceeds shall be applied to the sums secured by this Security Instrument, whether or not then due, with the excess, if any, paid to Borrower. Such insurance proceeds shall be applied in the order provided for in Section 2.

If Borrower abandons the Property, Lender may file, negotiate and settle any available insurance claim and related matters. If Borrower does not respond within 30 days to a notice from Lender that the insurance carrier has offered to settle a claim, then Lender may negotiate and settle the claim. The 30-day period will begin when the notice is given. In either event, or if Lender acquires the Property under Section 24 or otherwise, Borrower hereby assigns to Lender (a) Borrower's rights to any insurance

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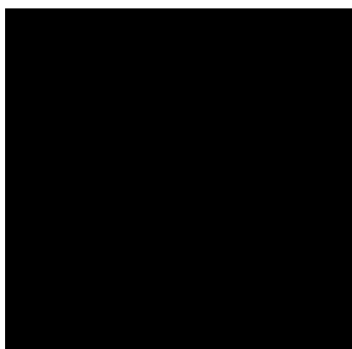
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ing its secured position in a bankruptcy proceeding. Securing the Property includes, but is not limited to, entering the Property to make repairs, change locks, replace or board up doors and windows, drain water from pipes, eliminate building or other code violations or dangerous conditions, and have utilities turned on or off. Although Lender may take action under this Section 9, Lender does not have to do so and is not under any duty or obligation to do so. It is agreed that Lender incurs no liability for not taking any or all actions authorized under this Section 9.

Any amounts disbursed by Lender under this Section 9 shall become additional debt of Borrower secured by this Security Instrument. These amounts shall bear interest at the Note rate from the date of disbursement and shall be payable, with such interest, upon notice from Lender to Borrower requesting payment.

If this Security Instrument is on a leasehold, Borrower shall comply with all the provisions of the lease. Borrower shall not surrender the leasehold estate and interests herein conveyed or terminate or cancel the ground lease. Borrower shall not, without the express written consent of Lender, alter or amend the ground lease. If Borrower acquires fee title to the Property, the leasehold and the fee title shall not merge unless Lender agrees to the merger in writing.

10. Assignment of Miscellaneous Proceeds; Forfeiture. All Miscellaneous Proceeds are hereby assigned to and shall be paid to Lender.

If the Property is damaged, such Miscellaneous Proceeds shall be applied to restoration or repair of the Property, if the restoration or repair is economically feasible and Lender's security is not lessened.

MASSACHUSETTS—Single Family—1/01 (based on Fannie Mae/Freddie Mac Form 3022 rev. 10/16)

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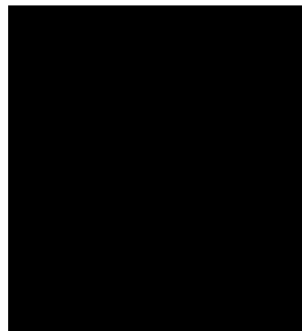
Ellie Mae, Inc.

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Borrower or any Successor in Interest of Borrower shall not be required to release the liability of Borrower or any Successors in Interest of Borrower. Lender shall not be required to commence proceedings against any Successor in Interest of Borrower or to refuse to extend time to payment or otherwise modify amortization of the sums secured by this Security Instrument by reason of any demand made by the original Borrower or any Successors in Interest of Borrower. Any forbearance by Lender in exercising any right or remedy including, without limitation, Lender's acceptance of payments from third persons, entities or Successors in Interest of Borrower or in amounts less than the amount then due, shall not be a waiver of or preclude the exercise of any right or remedy.

12. Joint and Several Liability; Co-signers; Successors and Assigns Bound. Borrower covenants and agrees that Borrower's obligations and liability shall be joint and several. However, any Borrower who co-signs this Security Instrument but does not execute the Note (a "co-signer"): (a) is co-signing this Security Instrument only to mortgage, grant and convey the co-signer's interest in the Property under the terms of this Security Instrument; (b) is not personally obligated to pay the sums secured by this Security Instrument, and (c) agrees that Lender and any other Borrower can agree to extend, modify, forbear or make any accommodations with regard to the terms of this Security Instrument or the Note without the co-signer's consent.

Subject to the provisions of Section 17, any Successor in Interest of Borrower who assumes Borrower's obligations under this Security Instrument in writing, and is approved by Lender, shall obtain all of Borrower's rights and benefits under this Security Instrument. Borrower shall not be released from

MASSACHUSETTS—Single Family—1/01 (based on Fannie Mae/Freddie Mac Form 3022 rev. 1/2/15)

Modified for FHA by Ellie Mae, Inc. rev 02/17

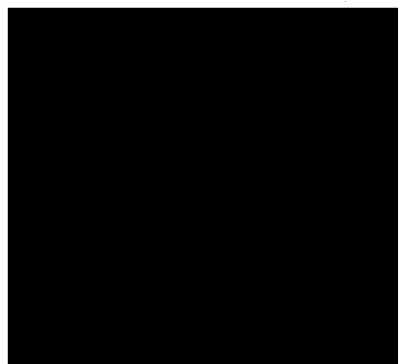
Ellie Mae, Inc.

Page 7 of 11

MAEFHA15DE 0217

MAEDEED (CLS)

10/27/2019 10:51 AM PST



to, those beneficial interests transferred in a bond for deed, contract for deed, installment sales contract or escrow agreement, the intent of which is the transfer of title by Borrower at a future date to a purchaser.

If all or any part of the Property or any interest in the Property is sold or transferred (or if Borrower is not a natural person and a beneficial interest in Borrower is sold or transferred), without Lender's prior written consent, Lender may require immediate payment in full of all sums secured by this Security Instrument. However, this option shall not be exercised by Lender if such exercise is prohibited by Applicable Law.

If Lender exercises this option, Lender shall give Borrower notice of acceleration. The notice shall provide a period of not less than 30 days from the date the notice is given in accordance with Section 14 within which Borrower must pay all sums secured by this Security Instrument. If Borrower fails to pay these sums prior to the expiration of this period, Lender may invoke any remedies permitted by this Security Instrument without further notice or demand on Borrower.

18. Borrower's Right to Reinstate After Acceleration. If Borrower meets certain conditions, Borrower shall have the right to reinstatement of a mortgage. Those conditions are that Borrower: (a) pays Lender all sums which then would be due under this Security Instrument and the Note as if no acceleration had occurred; (b) cures any default of any other covenants or agreements; (c) pays all expenses incurred in enforcing this Security Instrument, including, but not limited to, reasonable attorneys' fees, property inspection and valuation fees, and other fees incurred for the purpose of protecting Lender's interest in the Property and rights under this Security Instrument; and (d) takes such action as Lender may reason-

MASSACHUSETTS-Single Family-1/01 (based on Fannie Mae/Freddie Mac Form 3022 rev.10/10)

Modified for FHA by Ellie Mae, Inc. rev 02/17

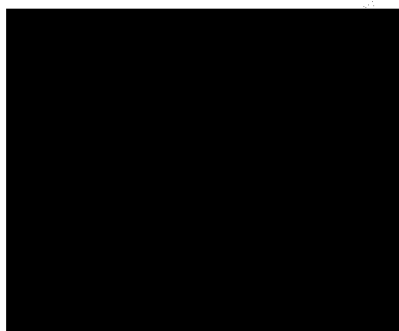
Ellie Mae, Inc.

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MAEFNA15DE 0217

MAEDEED (CLS)

10/25/2019 10:51 AM PST



or other action by any governmental or regulatory agency or private party involving the Property and any Hazardous Substance or Environmental Law of which Borrower has actual knowledge, (b) any Environmental Condition, including but not limited to, any spilling, leaking, discharge, release or threat of release of any Hazardous Substance, and (c) any condition caused by the presence, use or release of a Hazardous Substance which adversely affects the value of the Property. If Borrower learns, or is notified by any governmental or regulatory authority, or any private party, that any removal or other remediation of any Hazardous Substance affecting the Property is necessary, Borrower shall promptly take all necessary remedial actions in accordance with Environmental Law. Nothing herein shall create any obligation on Lender for an Environmental Cleanup.

22. Grounds for Acceleration of Debt.

(a) **Default.** Lender may, except as limited by regulations issued by the Secretary, in the case of payment defaults, require immediate payment in full of all sums secured by this Security Instrument if:

- (i) Borrower defaults by failing to pay in full any monthly payment required by this Security Instrument prior to or on the due date of the next monthly payment, or
- (ii) Borrower defaults by failing, for a period of thirty days, to perform any other obligations contained in this Security Instrument.

(b) **Sale Without Credit Approval.** Lender shall, if permitted by applicable law (including Section 341(d) of the Garn-St. Germain Depository Institutions Act of 1982, 12 U.S.C. 1701j-3(d)) and with

MASSACHUSETTS-Single Family-1/01 (based on Fannie Mae/Freddie Mac Form 3022 rev.10/16)

Modified for F1A by Ellie Mae, Inc. rev 02/17

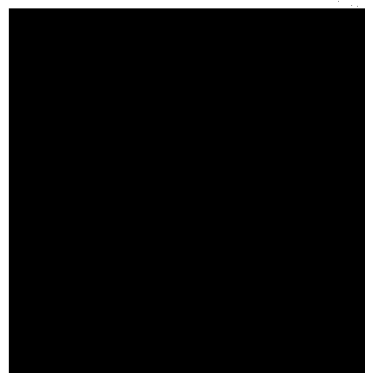
Ellie Mae, Inc.

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MAEFMA150E 0217

MAEDEED (CLS)

10/23/2019 10:51 AM PST



(a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 24, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower, and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it.

MASSACHUSETTS-Single Family-1/01 (based on Fannie Mae/Freddie Mac Form 3022 rev.10/10)

Modified for FHA by Ellie Mae, Inc. rev 02/17

Ellie Mae, Inc.

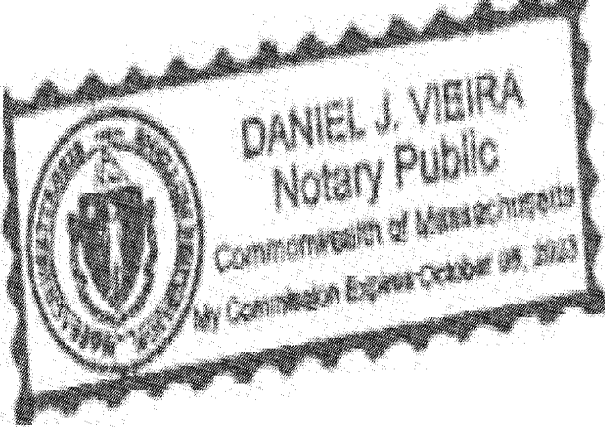
Page 10 of 11

MAEFHA150E 0217

MAEDEED (CLS)

10/27/2019 10:51 AM PST





Notary signature

Daniel J. Vieira

My commission expires

10/8/23

Lender: CrossCountry Mortgage, LLC

NMLS ID: 3029

Loan Originator: Jennifer Morrison

NMLS ID: 36462

MASSACHUSETTS Single Family-1/01 (based on Fannie Mae/Freddie Mac Form 3022 rev 1/01/0)

Modified for FHA by Ellie Mae, Inc. rev 02/17

Ellie Mae, Inc.

Page 11 of 11

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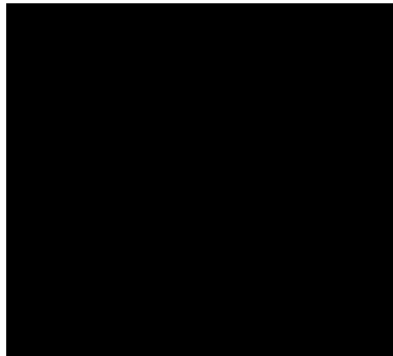


Exhibit A - Property Description

Closing Date: 10/24/2019
Borrower(s): Charlie Javier and Enrique Javier
Property Address: 37 Birch Hill Road, Bridgewater, MA 02324
Parcel ID: 82.36

That certain parcel of land, with the buildings thereon in Bridgewater, Plymouth County, Massachusetts, situated on the westerly side of Lake Nippinekit and described as follows:

Beginning at a point a corner formed by the junction of remaining land of Florence M. Reed, land recently conveyed to Pickard by Florence M. Reed and also land conveyed by the said Florence M. Reed to Fitzgerald, being the westerly corner of the herein described lot of land; thence by said Pickard's southerly line N. $83^{\circ} 11' E.$ 105.57 feet to a turn; thence S. $80^{\circ} 16' E.$ 125 feet more or less to the westerly line of Lake Nippinekit; thence by said Lake southerly 90 feet more or less to a corner of land of said Fitzgerald; thence by said Fitzgerald land N. $63^{\circ} 31' W.$ 226 feet more or less to the point of beginning.

The above premises are subject to all easements of record insofar as the same may be in full force and effect

For title see deed recorded herewith.

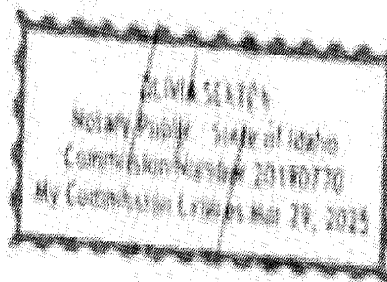
EXHIBIT D

AS MORTGAGEE, AS NOMINEE FOR CROSSCOUNTRY MORTGAGE, LLC, ITS SUCCESSORS
AND ASSIGNS the corporation that executed the instrument or the person, who executed the instrument on behalf
of said corporation, and acknowledged to me that such corporation executed the same.



OLIVIA SEXTON (COMMISSION EXP. 03/29/2025)

NOTARY PUBLIC



Page 1 of 1

MERS PHONE: 1-888-679-6377

EXHIBIT E

(herein "Property Address")

THIS SUBORDINATE MORTGAGE ("Security Instrument") is given on NOVEMBER 18, 2021. The mortgagor is ENRIQUE JAVIER AND CARLIE JAVIER, HUSBAND AND WIFE, AS TENANTS BY THE ENTIRETY ("Borrower"), whose address is 675 VFW PARKWAY 191, CHESTNUT HILL, MA 02467. This Security Instrument is given to the Secretary of Housing and Urban Development, whose address is 451 Seventh Street SW, Washington, DC 20410 ("Lender"). Borrower owes Lender the principal sum of EIGHTY-NINE THOUSAND SIX HUNDRED SIXTY-THREE DOLLARS AND 76 CENTS (U.S. \$89,663.76). This debt is evidenced by Borrower's note

Partial Claims Agreement 11162021_105

Page 1

Property Address: 37 37 BIRCH HILL RD, BRIDGEWATER, MA 02322

2. **Borrower Not Released; Forbearance By Lender Not a Waiver.** Extension of the time of payment of the sums secured by this Security Instrument granted by Lender to any successor in interest of Borrower shall not operate to release the liability of the original Borrower or Borrower's successor in interest. Lender shall not be required to commence proceedings against any successor in interest or refuse to extend time for payment or otherwise modify amortization of the sums secured by this Security Instrument by reason of any demand made by the original Borrower or Borrower's successors in interest. Any forbearance by Lender in exercising any right or remedy shall not be a waiver of or preclude the exercise of any right or remedy.

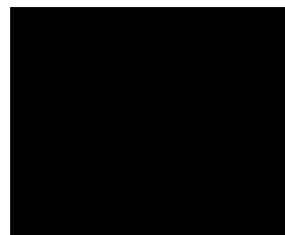
3. **Successors and Assigns Bound; Joint and Several Liability; Co-signers.** The covenants and agreements of this Security Instrument shall bind and benefit the successors

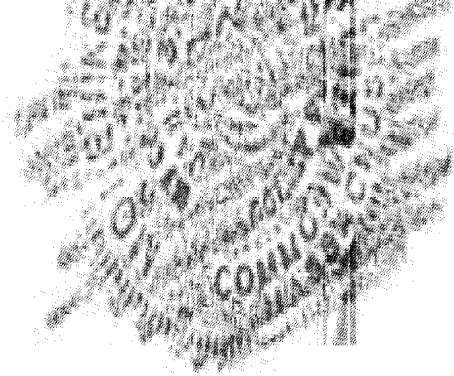


default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 7, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

Partial Claims Agreement 11/62021_105

Page 4





Partial Claims Agreement 1/16/2021 105

Page 5



Being the same property conveyed to ENRIQUE JAVIER AND CARLIE JAVIER,
HUSBAND AND WIFE, AS TENANTS BY THE ENTIRETY from ACE
INVESTMENT, LLC by Deed dated 10/25/2019 and recorded on 10/28/2019 in the
Register of Deed for PLYMOUTH County, MASSACHUSETTS in Deed Instrument
000912 Deed Book: 51850, Page: 129

ALSO KNOWN AS: 37 BIRCH HILL RD, BRIDGEWATER, MASSACHUSETTS
02324

Partial Claims Agreement [116202] 105

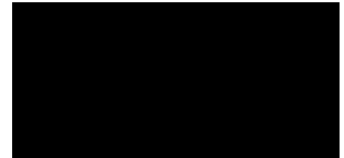
Page 6

EXHIBIT F

THIS SUBORDINATE MORTGAGE ("Security Instrument") is given on
OCTOBER 31, 2023. The mortgagor is **CARLIE JAVIER, AND ENRIQUE JAVIER**
HUSBAND AND WIFE ("Borrower"), whose address is **37 BIRCH HILL RD,**
BRIDGEWATER, MASSACHUSETTS 02324. This Security Instrument is given to the
Secretary of Housing and Urban Development, whose address is **451 Seventh Street SW,**
Washington, DC 20410 ("Lender"). Borrower owes Lender the principal sum of
SIXTEEN THOUSAND EIGHT HUNDRED SEVEN DOLLARS AND 0 CENTS (U.S.
\$16,807.00). This debt is evidenced by Borrower's note dated the same date as this Security

2. **Borrower Not Released; Forbearance By Lender Not a Waiver.** Extension of the time of payment of the sums secured by this Security Instrument granted by Lender to any successor in interest of Borrower shall not operate to release the liability of the original Borrower or Borrower's successor in interest. Lender shall not be required to commence proceedings against any successor in interest or refuse to extend time for payment or otherwise modify amortization of the sums secured by this Security Instrument by reason of any demand made by the original Borrower or Borrower's successors in interest. Any forbearance by Lender in exercising any right or remedy shall not be a waiver of or preclude the exercise of any right or remedy.

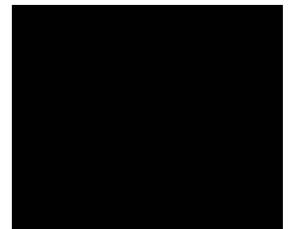
3. **Successors and Assigns Bound; Joint and Several Liability; Co-signers.** The covenants and agreements of this Security Instrument shall bind and benefit the successors

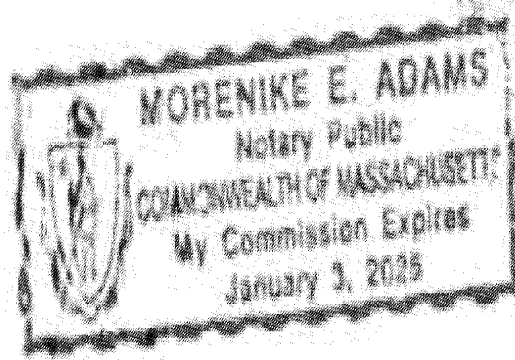


default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 7, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

Partial Claims Agreement 09122023 105

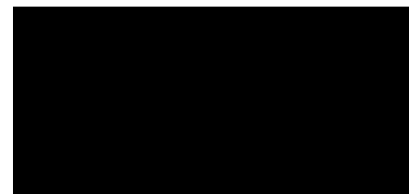
Page 4





Partial Claims Agreement 09122023_105

Page 5



HUSBAND AND WIFE, AS TENANTS BY THE ENTIRETY from ACE
INVESTMENT, LLC by Deed dated _____ and recorded on 10/28/2019 in the
Register of Deed for PLYMOUTH County, MASSACHUSETTS in Deed Instrument
00091218 Deed Book: 51850, Page: 129

ALSO KNOWN AS: 37 BIRCH HILL RD, BRIDGEWATER, MASSACHUSETTS
02324

Partial Claims Agreement 09122023_105

Page 6

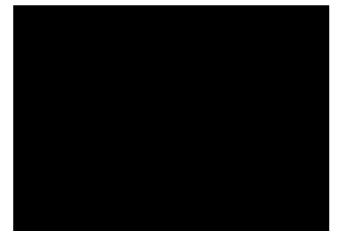


EXHIBIT G

not paid earlier, due and payable on **NOVEMBER 1, 2049**.

This Security Instrument secures to Lender: (a) the repayment of the debt evidenced by the Note, and all renewals, extensions and modifications of the Note; (b) the payment of all other sums, advanced under Paragraph 7 to protect the security of this Security Instrument; and (c) the performance of Borrower's covenants and agreements under this Security Instrument and the Note. For this purpose, Borrower does hereby mortgage, warrant, grant and convey to the Lender, with power of sale, the following described property located in the County of **PLYMOUTH**, State of **MASSACHUSETTS**:

which has the address of, **37 BIRCH HILL RD, BRIDGEWATER, MASSACHUSETTS 02324** (herein "Property Address");

SEE EXHIBIT "A" ATTACHED HERETO AND MADE A PART HEREOF.

Tax Parcel No. **82-36**

Partial Claims Agreement 12052023 105

Page 1

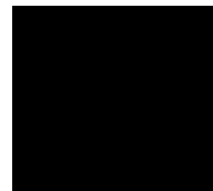


5. **Governing Law; Severability.** This Security Instrument shall be governed by Federal law and the law of the jurisdiction in which the Property is located. In the event that any provision or clause of this Security Instrument or the Note conflicts with applicable law, such conflict shall not affect other provisions of this Security Instrument or the Note which can be given effect without the conflicting provision. To this end the provisions of this Security Instrument and the Note are declared to be severable.

6. **Borrower's Copy.** Borrower shall be given one conformed copy of the Note and of this Security Instrument.

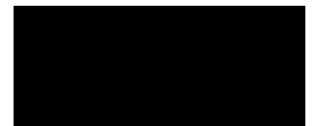
NON-UNIFORM COVENANTS. Borrower and Lender further covenant and agree as follows:

7. **Acceleration; Remedies.** Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument. The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the



Partial Claims Agreement (2015/2023) 105

Page 3



January 3, 2025



Partial Claims Agreement 12052023_105

Page 4



HUSBAND AND WIFE, AS TENANTS BY THE ENTIRETY from ACE
INVESTMENT, LLC by Deed dated _____ and recorded on 10/28/2019 in the
Register of Deed for PLYMOUTH County, MASSACHUSETTS in Deed Instrument
00091218 Deed Book: 51850, Page: 129

ALSO KNOWN AS: 37 BIRCH HILL RD, BRIDGEWATER, MASSACHUSETTS
02324

Partial Claims Agreement 12052023_105

Page 5



EXHIBIT H

The mortgagor is ENRIQUE JAVIER AND CARLIE JAVIER, HUSBAND AND WIFE, AS TENANTS BY THE ENTIRETY whose address is 675 VFW PARKWAY #301, CHESTNUT HILL, MA 02467

("Borrower")

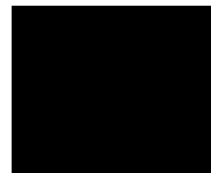
This Security Instrument is given to the Secretary of Housing and Urban Development, whose address is 451 Seventh Street, SW, Washington, DC 20410 ("HUD"). Borrower is obligated to repay HUD an amount equal to the sum of all advances, including future advances made on Borrower's behalf, up to the principal sum of FORTY-FOUR THOUSAND EIGHT HUNDRED NINETY-SIX DOLLARS AND 21 CENTS (U.S. \$44,896.21), under the terms of Borrower's Payment Supplement Note, dated same date as this Payment Supplement Security Instrument (hereinafter "Note" or "Payment Supplement Note"), which provides for the full debt, if not required to be paid earlier, is due and payable upon maturity or termination of the Borrower's Note, consistent with the terms of the Payment Supplement Agreement and Payment Supplement Note. This Security Instrument secures to HUD: (a) the repayment of the debt evidenced by the Note, and all renewals, extensions and modifications of the Note; (b) the payment of all other sums advanced under Paragraph 7 to protect the security of this Security Instrument; and (c) the performance of Borrower's covenants and

extend time for payment or otherwise modify amortization of the sums secured by this Security Instrument by reason of any demand made by the original Borrower or Borrower's successors in interest. Any forbearance by HUD in exercising any right or remedy under the Note, Payment Supplement Agreement, or this Security Instrument shall not be a waiver of or preclude the exercise of any right or remedy.

3. **Successors and Assigns Bound; Joint and Several Liability; Co-signers.** The covenants and agreements of this Security Instrument shall bind and benefit Borrower and any successors and assigns. Borrower may not assign this Security Instrument to another person or entity without HUD's prior written approval. To the extent there is more than one Borrower, each Borrower's covenants and agreements shall be joint and several. Any Borrower who co-signs this Security Instrument but is not required by HUD to execute the Note: (a) is co-signing this Security Instrument only to mortgage, grant and convey that Borrower's interest in the Property under the terms of this Security Instrument; (b) is not personally obligated to pay the sums secured by this Security Instrument; and (c) agrees that HUD and any other Borrower may agree to extend, modify, forbear or make any accommodations with regard to the terms of this Security Instrument, the Payment Supplement Agreement, or the Note without that Borrower's consent.

Payment Supplement Note and Security Instrument 07113024_619

Page 3



Payment Supplement Note and Security Instrument 07/12/24_619

Being the same property conveyed to ENRIQUE JAVIER AND CARLIE JAVIER,
HUSBAND AND WIFE, AS TENANTS BY THE ENTIRETY from ACE
INVESTMENT, LLC by Deed dated _____ and recorded on 10/28/2019 in the
Register of Deed for PLYMOUTH County, MASSACHUSETTS in Deed Instrument
00091218 Deed Book: 51850, Page: 129

ALSO KNOWN AS: 37 BIRCH HILL RD, BRIDGEWATER, MASSACHUSETTS
02324

Payment Supplement Note and Security Instrument 07112024_619

Page 5

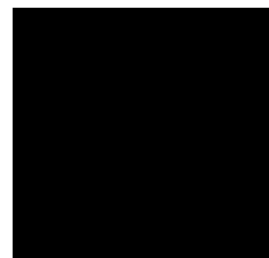


EXHIBIT I



5151 CORPORATE DR
TROY MI 48098-2639
RETURN SERVICE REQUESTED



S-SFFLAG10 L-DE202R
PL41YV00300056 - 808105105 I01157
CARLIE JAVIER
675 VFW PARKWAY PMB 191
CHESTNUTHILL MA 02467-3656

Loan #



Property Address:

37 Birch Hill Rd
Bridgewater MA 02324

December 18, 2024

- **This is an important notice concerning your right to live in your home. Have it translated at once.**
- **Esta carta explica sus derechos legales para permanecer en su propiedad de vivienda. Por favor traduzca esta notificacion inmediatamente.**
- **Este é um aviso importante em relação ao seu direito de morar na sua residência. Por favor, tem traduzido imediatamente.**
- **C'est une notification importante concernant votre droit de vivre chez vous. Faites-la traduire immédiatement.**
- **这是一则关于您居住权的重要通知, 请儘快安排翻译**

90-Day Right to Cure Your Mortgage Default

December 18, 2024

Sent Via Certified Mail and First-Class Mail

CARLIE JAVIER
675 VFW PARKWAY PMB 191
CHESTNUTHILL MA 02467-3656

RE: 37 Birch Hill Rd Bridgewater MA 02324; loan [REDACTED] with Lakeview Loan Servicing, Llc, as mortgagee; Mortgage Broker/Loan Originator, NOT APPLICABLE/JENNIFER MORRISON

To: Carlie Javier

We are contacting you because you did not make your monthly loan payments due on 11/1/24, 12/1/24 to Flagstar Bank, N.A. as servicer. You must pay the past due amount of \$6,974.00 on or before March 18, 2025, which is 90 days from the date of this notice. The past due amount on the date of this notice is specified below:

Current Due Date of Loan:	November 01, 2024
Total of all Unpaid Payments:	\$6,811.66
Total of Unpaid Late Fees:	\$162.34
Total of Unpaid Other Fees:	\$0.00
Less - Partial Payment Balance:	\$0.00
TOTAL DUE:	\$6,974.00

Unpaid Payment Breakdown:

11/01/24 - \$3,405.83
12/01/24 - \$3,405.83

If you pay the past due amount, and any additional monthly payments, late charges or fees that may become due between the date of this notice and the date when you make your payment, your account will be considered up-to-date and you can continue to make your regular monthly payments.

Make your payment directly to:

Payment Processing, P.O. Box 660263, Dallas, TX, 75266-0263.

Please consider the following:

- You should contact the Homeownership Preservation Foundation (888-995-HOPE) to speak with counselors who can provide assistance and may be able to help you work with your lender to avoid foreclosure.
- If you are a MassHousing borrower, you may also contact MassHousing (888-843-6432) to determine if you are eligible for additional assistance. There may be other homeownership assistance available through your lender or servicer.
- You may also contact the Division of Banks (617-956-1500) or visit www.mass.gov/foreclosures to find a foreclosure prevention program near you.
- After March 18, 2025, you can still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place. Depending on the terms of the loan, there may also be other ways to avoid foreclosure, such as selling your property, refinancing your loan, or voluntarily transferring ownership of the property to Lakeview Loan Servicing, LLC.

If you do not pay the total past due amount of \$6,974.00 and any additional payments that may become due by March 18, 2025, you may be evicted from your home after a foreclosure sale. If Lakeview Loan Servicing, LLC forecloses on this property, it means the mortgagee or a new buyer will take over the ownership of your home.

If you have questions, or disagree with the calculation of your past due balance, please contact Flagstar Bank at (800)393-4887 Monday through Friday, 8:30 a.m. - 9 p.m. ET, or Collections Department W-110-2, 5151 Corporate Drive, Troy, MI 48098.

Sincerely,

Bella Kharson
Collections Department
Flagstar Bank, N.A.

Enclosed with this notice, there may be additional important disclosures related to applicable laws and requirements that you should carefully review.

- This is an important notice concerning your right to live in your home. Have it translated at once.
- Esta carta explica sus derechos legales para permanecer en su propiedad de vivienda. Por favor traduzca esta notificacion inmediatamente.
- Este é um aviso importante em relação ao seu direito de morar na sua residência. Por favor, tem traduzido imediatamente.
- C'est une notification importante concernant votre droit de vivre chez vous. Faites-la traduire immédiatement.
- 这是一则关于您居住权的重要通知, 请儘快安排翻译

RIGHT TO REQUEST A MODIFIED MORTGAGE LOAN

December 18, 2024

Sent Via Certified Mail and First Class Mail

CARLIE JAVIER
675 VFW PARKWAY PMB 191
CHESTNUTHILL MA 02467-3656

RE: 37 Birch Hill Rd Bridgewater MA 02324; loan [REDACTED] with Lakeview Loan Servicing, Llc, as mortgagee.

To: Carlie Javier

We are contacting you because our records indicate that you are eligible to request a modification of your mortgage with Flagstar Bank, N.A. If you want to request a loan modification or other foreclosure alternative option, you must complete and return the enclosed Mortgage Modification Options form along with any supporting information no later than January 17, 2025. The Mortgage Modification Options form and any supporting documents must be returned by certified mail or similar service to Flagstar Bank as servicer. We will respond to your request within 30 days of its receipt.

Please be aware this notice of the Right to Request a Modified Mortgage Loan is different from the Right to Cure Your Mortgage Default notice that you may have already received. *The enclosed Mortgage Modification Options form provides you with four choices. These choices impact the options under the Right to Cure notice and should be carefully considered.* If you do not want to request a loan modification, you must still return the enclosed Mortgage Modification Options form. Please keep a copy of everything you send to us and keep proof of mailing the materials to us.

If you do not return the enclosed Mortgage Modification Options form and a completed loan modification application by January 17, 2025, your right to cure your mortgage default will end on March 18, 2025.

If you have questions, please contact Flagstar Bank at (800)393-4887 Monday through Friday, 8:30 a.m. - 9 p.m. ET, or Collections Department, W-110-2, 5151 Corporate Drive, Troy MI 48098. If you would like assistance from the Attorney General's Office, you may contact the HomeCorps hotline at (617) 573-5333 to speak with a loan modification specialist who can assist you. We suggest you mention this notice when you call.

Sincerely,

Bella Kharson
Collections Department
Flagstar Bank, N.A.

Enclosed with this notice, there may be additional important disclosures related to applicable laws and requirements that you should carefully review.

MORTGAGE MODIFICATION OPTIONS

You must return this form in the enclosed envelope by January 17, 2025.

CARLIE JAVIER
675 VFW PARKWAY PMB 191
CHESTNUTHILL MA 02467-3656

RE: 37 Birch Hill Rd Bridgewater MA 02324; loan [REDACTED]

To: Carlie Javier

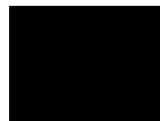
You must check one of the following boxes to notify Flagstar Bank ,N.A. of how you would like to proceed.

- ☐ I would like to request a loan modification. I have attached a complete statement of my income and list of assets, total debts and obligations as requested by the creditor in the form(s) which accompanied the Right to Request a Modified Mortgage Loan Notice. I maintain my right to a 90 day period to cure my mortgage default.
- ☐ I would like to request a different foreclosure alternative such as a short sale or deed-in-lieu of foreclosure. I maintain my right to a 90 day period to cure my mortgage default.
- ☐ I do not want to request a loan modification or any foreclosure alternative. I maintain my right to a 90 day period to cure my mortgage default.
- ☐ I want to waive my right to cure the default on my mortgage loan and proceed to foreclosure. I understand that by choosing this option I waive the remaining time, if any, of my right to cure period.

Borrower Name

Date

Borrower Telephone Number



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Loss Mitigation Application Homeowner Checklist

For Your Information Only - Do Not Return with your Loss Mitigation Application

GET STARTED – use this checklist to ensure you have completed all required forms and have the right information.

Step 1 ☐ **Review the information provided to help you understand your options, responsibilities, and next steps:**

☐ Avoiding Foreclosure ☐ Frequently Asked Questions ☐ Beware of Foreclosure Rescue Scams

Step 2 ☐ **Complete and sign the enclosed Loss Mitigation Application.** Must be signed by all borrowers on the mortgage (notarization is not required) and must include:

☐ All income, expenses, and assets for each borrower.

☐ An explanation of the financial hardship that makes it difficult to pay the mortgage.

☐ Your acknowledgment and agreement that all information that you provide is true and accurate.

Step 3 ☐ **Complete and sign a dated copy of the enclosed IRS 4506-C Form.**

☐ For each borrower, please submit a signed, dated copy of IRS 4506-C Form.

☐ For borrowers who filed their tax returns jointly, please submit one IRS 4506-C Form signed and dated by both joint filers.

Step 4 ☐ **Provide the required Hardship Documentation that will be used to verify your hardship.**

☐ Follow the instructions set forth on the Loss Mitigation Application Form (enclosed).

Step 5 ☐ **Provide required Income Documentation. This documentation will be used to verify your hardship and all of your income (Notice: Alimony, child support, or separate maintenance income does not need to be revealed if you choose not to have it considered for repaying this loan).**

☐ Follow the instructions set forth on the Loss Mitigation Application Form (enclosed).

☐ You may also disclose any income from a household member who is not on the promissory note (non-borrower contributor), such as a relative, spouse, domestic partner, or fiancé who occupies the property as a primary residence. If you elect to disclose and rely upon this income to qualify, the required income documentation is the same as the income documentation required for a borrower. See Page 4 of the Loss Mitigation Application Form for specific details on income documentation.

Step 6 ☐ **Gather and send completed documents (signed and dated)—your Loss Mitigation Application.**

You must send in all required documentation listed in steps 2-4 above, and summarized below:

- **Loss Mitigation Application Form (enclosed).**
- **Hardship Documentation as outlined on Page 3 of the Loss Mitigation Application Form (enclosed).**
- **Income Documentation as outlined on Page 4 of the Loss Mitigation Application Form (enclosed).**
- **Detailed Loss Mitigation Application—Financial Breakdown Form (enclosed).**
- **IRS 4506-C Form (enclosed).**
- **Optional: Third Party Authorization (enclosed).**

Please send all documents above to us using any of the methods below:

By Mail:

Loss Mitigation W-110-2
5151 Corporate Drive
Troy, MI 48098

Online:

FLAGSTAR.COM/MYLOANS

Toll-Free Fax:

(866) 234-9845

IMPORTANT REMINDERS:

- ☐ If you cannot provide the documentation within the time frame provided, have other types of income not specified on Page 4 of the Loss Mitigation Application, cannot locate some or all of the required documents, OR have any questions, please call us at (800)393-4887, Monday through Friday, 8:30 a.m. - 9 p.m. ET.
- ☐ Keep a copy of all documents and proof of mailing/submission for your records. **Don't send original income or hardship documents. Copies are acceptable.**
- ☐ You can complete the loss mitigation application conveniently online through your account (FLAGSTAR.COM/MYLOANS).

Questions? Call us at (800)393-4887

Information on Avoiding Foreclosure

For Your Information Only - Do Not Return with Your Loss Mitigation Application

Mortgage Programs Are Available to Help

There are a variety of programs available to help you resolve your delinquency and keep your home. You may be eligible to refinance or modify your mortgage to make your payments and terms more manageable, for instance, lowering your monthly payment to make it more affordable. Or, if you have missed a few payments, you may qualify for a temporary (or permanent) solution to help you get your finances back on track. Depending on your circumstances, staying in your home may not be possible. In this case, a short sale or deed-in-lieu of foreclosure may be a better choice than foreclosure – see the table below for more information:

OPTIONS TO STAY IN YOUR HOME	OVERVIEW	BENEFIT
Refinance	Receive a new loan with lower interest rate or other favorable terms.	Makes your payment or terms more affordable.
Reinstatement	Pay the total outstanding payments owed, in a lump sum, by a specific date. This may follow a forbearance plan as described below.	Allows you to avoid foreclosure by bringing your mortgage current if you can show you have funds that will become available at a specific date in the future.
Repayment Plan	Pay back your past-due payments together with your regular payments over an extended period of time.	Allows you time to catch up on late payments without having to come up with a lump sum.
Forbearance Plan	Make reduced mortgage payments or no mortgage payments for a specific period of time.	Have time to improve your financial situation and get back on your feet.
Modification	Receive modified terms of your mortgage to make it more affordable or manageable after successfully making payments during a "trial period" (that is, completing a three- or four-month trial period plan) that approximate the modified payment.	Permanently modifies your mortgage so that your payments or terms are more manageable as a permanent solution to a long-term or permanent hardship.
OPTIONS TO LEAVE YOUR HOME	OVERVIEW	BENEFIT
Short Sale	Sell your home and pay off a portion of your mortgage balance when you owe more on the home than it is worth.	Allows you to transition out of your home without going through foreclosure. In some cases, relocation assistance may be available.
Mortgage Release (Deed-in-Lieu of Foreclosure)	Transfer the ownership of your property to us.	Allows you to transition out of your home without going through foreclosure. In some cases, relocation assistance may be available.

We Want to Help

Take action and gain peace of mind and control of your situation. Complete and return the Loss Mitigation Application to start the process of getting the help you need now.

Frequently Asked Questions

For Your Information Only - Do Not Return with Your Loss Mitigation Application

1. Why Did I Receive this Package?

You received this package because you have either requested loss mitigation assistance, or because we have not received one or more of your monthly mortgage payments and want to help you keep your home if at all possible. By completing this package, we can work together at exploring options that may help resolve any temporary or long-term financial challenge you face in making your mortgage payments.

2. Where Can I Find More Information on Foreclosure Prevention?

Please see the Avoiding Foreclosure enclosure in this package for more information, or you can call us at **(800)393-4887**.

3. What if I Don't Want to Stay in My Home Anymore?

You may have good reasons for needing to leave your property, such as a job relocation, a divorce, financial hardship due to the death of a borrower, or some other reason preventing you from keeping your property. If you intend to transition out of your home, please indicate that you want to sell or vacate the property on page 2 of the attached Loss Mitigation Application and we may first evaluate you for a short sale or Mortgage Release (deed-in-lieu of foreclosure). Even if you are approved for one of those workout solutions, we may consider you for a mortgage loan modification.

4. Will it Cost Money to Get Help?

There should never be a fee from your servicer or qualified counselor to obtain assistance or information about foreclosure prevention options. However, foreclosure prevention has become a target for scam artists. Be wary of companies or individuals offering to help you for a fee, and never send a mortgage payment to any company other than the one listed on your monthly mortgage statement or one designated to receive your payments under a state assistance program.

5. What Happens Once I Have Sent the Loss Mitigation Application to You?

We will send you a written notice within five business days of our receipt of your Loss Mitigation Application to confirm that we have received your package and will review it to determine whether it is complete or incomplete. If we determine there is missing information or documentation, we also will send you an incomplete information notice. We cannot guarantee that you will receive any (or a particular type of) assistance.

Within 30 days of receipt of a complete Loss Mitigation Application, we will let you know which foreclosure alternatives, if any, are available to you and will inform you of your next steps to accept our offer. However, if we receive your complete Loss Mitigation Application 37 calendar days or less before a scheduled foreclosure sale date, we will strive to process your request as quickly as possible, but you may not receive a notice of incompleteness or a decision on your request prior to sale. Please submit your Loss Mitigation Application as soon as possible.

6. What Happens to My Mortgage While You Are Evaluating My Loss Mitigation Application?

You remain obligated to make all mortgage payments as they come due, even while we are evaluating the types of assistance that may be available.

7. Will the Foreclosure Process Begin if I Do Not Respond to this Letter?

Depending on the status of your loan if you do not respond to this letter, we may refer your loan to foreclosure in accordance with your mortgage loan documents and applicable law.

8. Should I Still Contact You if I Have Waited Too Long and My Property Has Been Referred to an Attorney for Foreclosure?

Yes, the sooner the better!

FREQUENTLY ASKED QUESTIONS continued

9. What if My Property is Scheduled for a Foreclosure Sale in the Future?

If we receive a complete Loss Mitigation Application 37 calendar days or less before a scheduled foreclosure sale, there is no guarantee we can evaluate you for a foreclosure alternative in time to stop the foreclosure sale. Even if we are able to approve you for a foreclosure alternative prior to a sale, a court with jurisdiction over the foreclosure proceeding (if any) or public official charged with carrying out the sale may not halt the scheduled sale.

10. Will My Property be Sold at a Foreclosure Sale if I Accept a Foreclosure Alternative?

No. The property will not be sold at a foreclosure sale if you accept an offer for an alternative to foreclosure and comply with all requirements.

11. Will My Credit Report Be Affected by My Late Payments or Being in Default?

The delinquency status of your loan will continue to be reported to credit reporting agencies as well as your entry into a Repayment Plan, Forbearance Plan, or Trial Period Plan in accordance with the requirements of the Fair Credit Reporting Act and the Consumer Data Industry Association requirements.

12. Will My Credit Score Be Affected if I Accept a Foreclosure Prevention Option?

While the effect on your credit will depend on your individual credit history, credit scoring companies generally would consider your entry into a plan with reduced payments as increasing your credit risk. As a result, entering into a plan with reduced payments may adversely affect your credit score, particularly if you are current on your mortgage or otherwise have a good credit score. However, bringing your loan current through a reinstatement, Repayment Plan, or loan modification and continuing to make timely payments may improve your credit score over time.

13. Is Foreclosure Prevention Counseling Available?

Yes, HUD-approved counselors are available to provide you with the information and assistance you may need to avoid foreclosure. You can use the search tool at hud.gov/offices/hsg/sfh/hcc/fc/ to find a counselor near you.

14. I Have Seen Ads and Flyers From Companies Offering to Help Me Avoid Foreclosure for a Fee. Are These Companies on the Level?

Foreclosure prevention has become a target for scam artists. We suggest using the HUD website referenced in question 13 to locate a counselor near you. Also, please refer to the enclosed "Beware of Foreclosure Rescue Scams" document for more information.

BEWARE OF FORECLOSURE RESCUE SCAMS - TIPS & WARNING SIGNS

For Your Information Only - Do Not Return with Your Loss Mitigation Application

Scam artists are stealing millions of dollars from distressed homeowners by promising immediate relief from foreclosure, or demanding cash for counseling services when HUD-approved counseling agencies provide the same services for FREE. If you receive an offer, information or advice that sounds too good to be true, it probably is. Don't let them take advantage of you, your situation, your house or your money. **Remember, help is FREE.**

How to Spot a Scam - beware of a company or person who:

- Asks for a fee in advance to work with your lender to modify, refinance, or reinstate your mortgage.
- Guarantees they can stop a foreclosure or get your loan modified.
- Advises you to stop paying your mortgage company and pay them instead.
- Pressures you to sign over the deed to your home or sign any paperwork that you haven't had a chance to read or don't fully understand.
- Claims to offer "government-approved" or "official government" loan modifications.
- Asks you to release personal financial information online or over the phone and you have not been working with this person and/or do not know them.

How to Report a Scam - do one of the following:

- Call (888) 995-HOPE (4673) and tell the counselor about your situation and that you believe you got scammed or know of a scam.
- Call the Federal Trade Commission at (877) 382-4357 to report the suspected scam.
- Contact your state's attorney general. Visit naag.org/attorneys_general.php to find the attorney general for your state.
- Contact your state's Consumer Protection Offices. Visit usa.gov/state-consumer to find the Consumer Protection Offices for your state.

The Loan Modification Scam Prevention Network is a national coalition of governmental and private organizations led by Fannie Mae, Freddie Mac, NeighborWorks America™ and the Lawyers' Committee for Civil Rights Under Law.

Loss Mitigation Application

If you are having mortgage payment challenges, please complete and submit this application, along with the required documentation, via mail to: **Loss Mitigation Department, W-110-2, 5151 Corporate Dr., Troy, MI 48098**, online: **FLAGSTAR.COM/MYLOANS** or fax: **(866) 234-9845**. We will contact you within five business days to acknowledge receipt and let you know if you need to send additional information or documents. Please include your loan number on all pages submitted for review.

We will use the information you provide to help us identify the assistance you may be eligible to receive. If you need help completing this application, please call us at **(800)393-4887**.

For a list of HUD-approved housing counseling agencies that can provide foreclosure prevention information, contact one of the following federal government agencies:

- The U.S. Department of Housing and Urban Development (HUD) at (800) 569-4287 or hud.gov/counseling.
- The Consumer Financial Protection Bureau (CFPB) at (855) 411-2372 or consumerfinance.gov/mortgagehelp.

If you need assistance with translation or other language assistance, HUD-approved housing counseling agencies may be able to assist you. These services are provided without charge.

Borrower Information

Borrower's Name: _____

Social Security Number (Last 4 Digits): _____

Email Address: _____

Primary Phone Number: _____ ☐ Cell ☐ Home ☐ Work ☐ Other

Alternate Phone Number: _____ ☐ Cell ☐ Home ☐ Work ☐ Other

Co-Borrower's Name: _____

Social Security Number (Last 4 Digits): _____

Email Address: _____

Primary Phone Number: _____ ☐ Cell ☐ Home ☐ Work ☐ Other

Alternate Phone Number: _____ ☐ Cell ☐ Home ☐ Work ☐ Other

Preferred Contact Method (Choose All That Apply): ☐ Cell phone ☐ Home phone ☐ Work phone ☐ Email

Is either borrower on active duty with the military (including the National Guard and Reserves), the dependent of a borrower on active duty, or the surviving spouse of a member of the military who was on active duty at the time of death? ☐ Yes ☐ No

Non-Borrower Contributor Information

If a non-borrower :

- has agreed to include their income in the review of this Loss Mitigation Application,
- will use their income to contribute toward the mortgage payment, AND
- occupies the property as their primary residence

this section must be completed, the non-borrower contributor's financial information must be provided where indicated throughout the application, and the non-borrower contributor must sign the Borrower, Co-Borrower, and Non-Borrower Contributor Certification and Agreement.

Non-Borrower Contributor's Name: _____

Full Social Security Number: _____ Date of Birth: _____

What percentage of your income will you contribute to household expenses and mortgage payments: _____%

Property Information

Property Address Street: _____

City: _____ State: _____ ZIP Code: _____

Mailing Address (If Different From the Property Address)

Street: _____

City: _____ State: _____ ZIP Code: _____

- The property is currently: ☐ A primary residence ☐ A second home ☐ An investment property
- The property is (select all that apply): ☐ Owner occupied ☐ Renter occupied ☐ Vacant
- Is the property subject to condominium or homeowners association (HOA) fees? ☐ Yes ☐ No – If yes, provide the most-recent HOA statement along with the other required documentation requested in this application.
- I want to: ☐ Keep the property ☐ Sell the property ☐ Transfer ownership of the property to the servicer ☐ Undecided
- Is the property listed for sale? ☐ Yes ☐ No – If yes, please refer to the Short Sale Information section below.

Short Sale Information

A short sale is an option that permits the sale of your property for less than the balance remaining on your mortgage loan. If you are interested in pursuing this option, and have your property listed for sale, please provide the information listed below along with the other required documentation requested in this application based on your current situation.

PROPERTY STATUS

REQUIRED DOCUMENTATION

Property Listed—Offer Not Received

- Active MLS
- Active Listing Agreement
- Third Party Authorization Form

Property Listed—Offer Received

- Active MLS
- Active Listing Agreement
- Third Party Authorization Form
- Purchase Agreement (30+ Days to Closing)
- Preliminary Closing Disclosure (HUD-1) (30+ Days to Closing)
- Buyer's Pre-Approval (30+ Days to Closing)
- Buyer's Articles of Incorporation (If Applicable)

HARDSHIP INFORMATION

The hardship causing mortgage payment challenges began on approximately (date) _____ and is believed to be:

- ☐ Short-term (under 6 months).
☐ Long-term or permanent (greater than 6 months).
☐ Resolved as of (date) _____.

TYPE OF HARDSHIP (CHECK ALL THAT APPLY)	REQUIRED HARDSHIP DOCUMENTATION
☐ Unemployment Actively Seeking Employment? ☐ Yes ☐ No	☒ A signed and dated written explanation describing the details of the hardship and any relevant documentation.
☐ Reduction in income: a hardship that has caused a decrease in your income due to circumstances outside your control (e.g., elimination of overtime, reduction in regular working hours, a reduction in base pay)	☒ A signed and dated written explanation describing the details of the hardship and any relevant documentation.
☐ Increase in housing-related expenses: a hardship that has caused an increase in your housing expenses due to circumstances outside your control (e.g., uninsured losses, increased property taxes, HOA special assessment)	☒ A signed and dated written explanation describing the details of the hardship and any relevant documentation.
☐ Disaster (natural or man-made) impacting the property or the borrower's place of employment	☒ A signed and dated written explanation describing the details of the hardship and any relevant documentation.
☐ Long-term or permanent disability, or serious illness of a borrower/co-borrower or dependent family member	☒ Written statement from the borrower, or other documentation verifying disability or illness. ☒ Note: Detailed medical information is not required, and information from a medical provider is not required.
☐ Divorce or legal separation	☒ Final divorce decree or final separation agreement. ☒ Recorded quitclaim deed.
☐ Separation of borrowers unrelated by marriage, civil union, or similar domestic partnership under applicable law	☒ Legally-binding agreement evidencing that the non-occupying borrower or co-borrower has relinquished all rights to the property. ☒ Recorded quitclaim deed.
☐ Death of borrower or death of either the primary or secondary wage earner	☒ Death certificate.
☐ Distant employment transfer/relocation	☒ For active duty service members: Permanent Change of Station (PCS) orders or letter showing transfer. ☒ For employment transfers/new employment: A copy of the signed offer letter or notice from employer showing transfer to a new location or written explanation if employer documentation not applicable, AND ☒ Documentation that reflects the amount of any relocation assistance provided (not required for PCS orders).
☐ Other – hardship that is not covered above: _____ _____ _____	☒ A signed and dated written explanation describing the details of the hardship and any relevant documentation.

Income

Please enter all borrower and non-borrower contributor income amounts in middle column.

MONTHLY TOTAL APPLICANT INCOME TYPE	AMOUNT FOR ALL APPLICANTS	REQUIRED INCOME DOCUMENTATION
Gross (pre-tax) wages, salaries and overtime pay, commissions, tips, and bonuses	\$	■ Most-recent pay stub(s) and documentation of year-to-date earnings and deductions: ☐ Biweekly Pay: Three most-recent paystubs ☐ Weekly Pay: Five most-recent paystubs ☐ Semi-monthly Pay: Two most-recent paystubs ☐ Monthly Pay: most-recent paystub
Self-employment income	\$	■ Most-recent signed and dated quarterly or year-to-date profit/loss statement (business-related income and expenses only) AND ■ Three most-recent bank statements corresponding with the profit/loss statement income amounts AND ■ Most-recent complete and signed business tax return OR ■ Most-recent complete and signed individual federal income tax return
Unemployment benefit	\$	■ Unemployment award letter
Social Security or disability income, pension, death benefits, adoption assistance, housing allowance, and other public assistance	\$	■ Award letters or other documentation showing the amount and frequency of the benefits AND ■ Two most-recent bank statements showing deposit amounts AND ■ If received on behalf of a minor: Provide the date of birth for each minor (MM/DD/YYYY) - o DOB: _____ - o DOB: _____ - o DOB: _____
Rental income (rents received, less expenses other than mortgage expense)	\$	■ Signed Lease Agreement and most-recent tax returns AND ■ Three most-recent bank statements demonstrating receipt of rent OR ■ Three most-recent deposited rent checks
Other sources of income not listed above (Note: Only include alimony, child support, or separate maintenance income if you choose to have it considered for repaying this loan)	\$	■ Other documentation showing the amount and frequency of the income (e.g., divorce decree, child support order) AND ■ Two most-recent bank statements showing receipt of income ■ Child Support income only: Provide the date of birth for each child (MM/DD/YYYY) - o DOB: _____ - o DOB: _____ - o DOB: _____

Borrower, Co-Borrower, and Non-Borrower Contributor Certification and Agreement

1. I certify and acknowledge that all of the information in this Loss Mitigation Application is truthful, and any hardship I identified contributed to the need for mortgage relief. Knowingly submitting false information may violate federal and other applicable law.
2. I agree to provide the servicer with all required documents, including any additional supporting documentation as requested, and will respond in a timely manner to all servicer or authorized third party* communications.
3. I acknowledge and agree that the servicer is not obligated to offer me assistance based solely on the representations in this document or other documentation submitted in connection with this request.
4. I consent to the servicer or authorized third party* obtaining a current credit report. Credit reports are required for borrowers, co-borrowers, and non-borrower contributors.
5. I consent to the disclosure by the servicer, authorized third party,* or any investor/guarantor of the mortgage loan(s), of any personal information collected during the mortgage assistance process and of any information about any relief I receive, to any third party that deals with the first lien or subordinate lien (if applicable) mortgage loan(s), including Fannie Mae, Freddie Mac, or any investor, insurer, guarantor, or servicer of the mortgage loan(s) or any companies that provide support services to them, for purposes permitted by applicable law. Personal information may include, but is not limited to: (a) name, address, telephone number, (b) Social Security number, (c) credit score, (d) income, and (e) payment history and information about account balances and activity.
6. I agree that the terms of this certification and agreement will apply to any modification trial period plan, repayment plan, or forbearance plan that may be offered based on this application. If I receive an offer for a modification trial period plan or repayment plan, I agree that the first timely payment under the plan will serve as acceptance of the plan.
7. I understand, acknowledge, and agree that the servicer and other loan participants can use and share tax return information for purposes of servicing a loan or as otherwise permitted by applicable laws, including state and federal privacy and data security laws. The servicer includes the servicer's affiliates, agents, service providers and any of aforementioned parties' successors and assigns. The other loan participants include any actual or potential owners of a loan resulting from the loan application, loss mitigation application, or acquirers of any beneficial or other interest in the loan, any mortgage insurer, guarantor, any servicers or service providers for these parties and any of aforementioned parties' successors and assigns.
8. I consent to being contacted concerning this application for mortgage assistance at any telephone number, including mobile telephone number, or email address I have provided to the lender, servicer, or authorized third party.*

* An authorized third party may include, but is not limited to, a housing counseling agency, Housing Finance Agency (HFA) or other similar entity that is assisting me in obtaining a foreclosure prevention alternative.

Borrower Signature: _____ Date: _____

Co-Borrower Signature: _____ Date: _____

Non-Borrower Contributor Signature: _____ Date: _____

Please submit your completed application, together with the required documentation, via mail to: **Loss Mitigation Department, W-110-2, 5151 Corporate Dr., Troy, MI 48098**, online: **FLAGSTAR.COM/MYLOANS** or fax: **(866) 234-9845**. We will contact you within five business days to acknowledge receipt and let you know if you need to send additional information or documents. Please include loan number on all pages submitted for review.

We will use the information you provided to help us identify the assistance you may be eligible to receive.

Loss Mitigation Application—Financial Breakdown

Please include all items you are currently responsible for, even if you are not current on those payments. Some expense information, such as credit cards and loans, will be obtained from credit reports.

How many people live in the household? (including yourself)	
---	--

INCOME	BORROWER	CO-BORROWER	NON-BORROWER CONTRIBUTOR
Monthly Net Income from Employment	\$	\$	\$
Frequency of Pay Period			
Monthly Government Benefits & Insurance Income	\$	\$	\$
Monthly Unemployment Income	\$	\$	\$
Monthly Rental Income	\$	\$	\$
Monthly Alimony Income	\$	\$	\$
Monthly Child Support Income	\$	\$	\$
Monthly Net Income from Employment	\$	\$	\$
Other Monthly Income <i>Please describe other below:</i>	\$	\$	\$
Total Monthly Income	\$	\$	\$

MONTHLY FAMILY EXPENSES (OUT OF POCKET)	BORROWER	CO-BORROWER	NON-BORROWER CONTRIBUTOR
Monthly Auto Maintenance/Gas	\$	\$	\$
Monthly Auto Insurance	\$	\$	\$
Monthly Food	\$	\$	\$
Monthly Medical/Dental (Out of Pocket Costs, Not Premiums)	\$	\$	\$
Monthly Alimony Paid	\$	\$	\$
Monthly Child Support Paid	\$	\$	\$
Monthly Child Care	\$	\$	\$
Monthly Entertainment	\$	\$	\$
Other Monthly Family Expenses <i>Please describe other below:</i>	\$	\$	\$
Total Monthly Family Expenses	\$	\$	\$

HOME EXPENSES: ALL RESIDENCES	BORROWER	CO-BORROWER	NON-BORROWER CONTRIBUTOR
1 st Lien Monthly Payment	\$	\$	\$
2 nd Lien Monthly Payment	\$	\$	\$
Monthly Rent Payment	\$	\$	\$
Monthly HOA Dues	\$	\$	\$
Monthly Property Taxes & Insurance (If Not Included in the Payment)	\$	\$	\$
Monthly Cable TV/Streaming	\$	\$	\$
Monthly Electricity	\$	\$	\$
Monthly Natural Gas	\$	\$	\$
Monthly Phone/Internet	\$	\$	\$
Monthly Sewer/Water	\$	\$	\$
Other Monthly Home Expenses <i>Please describe other below:</i>			
Total Primary Residence Expenses	\$	\$	\$

ASSETS	VALUE	AMOUNT OWED
Property 1	\$	\$
Property 2	\$	\$
401(k) Accounts	\$	\$
Checking Account(s) & Cash on Hand	\$	\$
Savings, Money Market, & CD Accounts	\$	\$
IRA/Keogh Accounts	\$	\$
Stocks/Bonds (Non-Retirement Accounts)	\$	\$
Other Real Estate	\$	\$
Other Assets <i>Please describe other below:</i>		

Borrower Signature

Date

Co-Borrower Signature

Date

Non-Borrower Contributor Signature

Date

Form **4506-C**
(October 2022)

Department of the Treasury - Internal Revenue Service

IVES Request for Transcript of Tax Return

OMB Number
1545-1872

Do not sign this form unless all applicable lines have been completed.
Request may be rejected if the form is incomplete or illegible.
For more information about Form 4506-C, visit www.irs.gov and search IVES.

1a. Current name			2a. Spouse's current name (if joint return and transcripts are requested for both taxpayers)		
i. First name	ii. Middle initial	iii. Last name/BMF company name	i. Spouse's first name	ii. Middle initial	iii. Spouse's last name
1b. First taxpayer identification number (see instructions)			2b. Spouse's taxpayer identification number (if joint return and transcripts are requested for both taxpayers)		
1c. Previous name shown on the last return filed if different from line 1a			2c. Spouse's previous name shown on the last return filed if different from line 2a		
i. First name	ii. Middle initial	iii. Last name	i. First name	ii. Middle initial	iii. Last name
3. Current address (including apt., room, or suite no.), city, state, and ZIP code (see instructions)					
a. Street address (including apt., room, or suite no.)			b. City	c. State	d. ZIP code
4. Previous address shown on the last return filed if different from line 3 (see instructions)					
a. Street address (including apt., room, or suite no.)			b. City	c. State	d. ZIP code
5a. IVES participant name, ID number, SOR mailbox ID, and address					
i. IVES participant name Equifax Workforce Solutions LLC			ii. IVES participant ID number 300005		iii. SOR mailbox ID Equifax01
iv. Street address (including apt., room, or suite no.) 11432 Lackland Rd.			v. City St. Louis	vi. State MO	vii. ZIP code 63146
5b. Customer file number (if applicable) (see instructions)			5c. Unique identifier (if applicable) (see instructions)		
5d. Client name, telephone number, and address (this field cannot be blank or not applicable (NA))					
i. Client name					ii. Telephone number
iii. Street address (including apt., room, or suite no.)			iv. City	v. State	vi. ZIP code
Caution: This tax transcript is being sent to the third party entered on Line 5a and/or 5d. Ensure that lines 5 through 8 are completed before signing. (see instructions)					
6. Transcript requested. Enter the tax form number here (1040, 1065, 1120, etc.) and check the appropriate box below. Enter only one tax form number per request for line 6 transcripts					
a. Return Transcript ☐		b. Account Transcript ☐		c. Record of Account ☐	
7. Wage and income transcript (W-2, 1098-E, 1099-G, etc.) ☐					
a. Enter a max of three form numbers here; if no entry is made, all forms will be sent.					
b. Mark the checkbox for taxpayer(s) requesting the wage and income transcripts. If no box is checked, transcripts will be provided for all listed taxpayers					
Line 1a ☐		Line 2a ☐			
8. Year or period requested. Enter the ending date of the tax year or period using the mm dd yyyy format (see instructions)					
/ / / / / / / /					
Caution: Do not sign this form unless all applicable lines have been completed.					
Signature of taxpayer(s). I declare that I am either the taxpayer whose name is shown on line 1a or, if applicable, line 2a, or a person authorized to obtain the tax information requested. If the request applies to a joint return, at least one spouse must sign; however, if both spouses' names and TINs are listed in lines 1a-1b and 2a-2b, both spouses must sign the request. If signed by a corporate officer, 1 percent or more shareholder, partner, managing member, guardian, tax matters partner, executor, receiver, administrator, trustee, or party other than the taxpayer, I certify that I have the authority to execute Form 4506-C on behalf of the taxpayer. Note: This form must be received by IRS within 120 days of the signature date.					
☐ Signatory attests that he/she has read the above attestation clause and upon so reading declares that he/she has the authority to sign the Form 4506-C. See instructions.					
Sign Here	Signature for Line 1a (see instructions)			Date	Phone number of taxpayer on line 1a or 2a
	☐ Form 4506-C was signed by an Authorized Representative			☐ Signatory confirms document was electronically signed	
	Print/Type name				
	Title (if line 1a above is a corporation, partnership, estate, or trust)				
	Spouse's signature (required if listed on Line 2a)			Date	
	☐ Form 4506-C was signed by an Authorized Representative			☐ Signatory confirms document was electronically signed	
Print/Type name					

Instructions for Form 4506-C, IVES Request for Transcript of Tax Return

Section references are to the Internal Revenue Code unless otherwise noted.

Future Developments

For the latest information about Form 4506-C and its instructions, go to www.irs.gov and search IVES. Information about any recent developments affecting Form 4506-C (such as legislation enacted after we released it) will be posted on that page.

What's New. Form 4506-C includes the Client company requesting transcripts and increased the number of Wage and Income transcripts requests.

General Instructions

Caution: Do not sign this form unless all applicable lines have been completed.

Designated Recipient Notification. Section 6103(c) limits disclosure and use of return information received pursuant to the taxpayer's consent and holds the recipient subject to penalties for any unauthorized access, other use, or redisclosure without the taxpayer's express permission or request.

Taxpayer Notification. Section 6103(c) limits disclosure and use of return information provided pursuant to your consent and holds the recipient subject to penalties, brought by private right of action, for any unauthorized access, other use, or redisclosure without your express permission or request.

Purpose of form. Use Form 4506-C to request tax return information through an authorized IVES participant. You will designate an IVES participant to receive the information on line 5a.

Note: If you are unsure of which type of transcript you need, check with the party requesting your tax information.

Where to file. The IVES participant will fax Form 4506-C with the approved IVES cover sheet to their assigned Service Center.

Chart for ordering transcripts

If your assigned Service Center is:	Fax the requests with the approved coversheet to:
Austin Submission Processing Center	Austin IVES Team 844-249-6238
Kansas City Submission Processing Center	Kansas City IVES Team 844-249-8128
Ogden Submission Processing Center	Ogden IVES Team 844-249-8129

Specific Instructions

Line 1a/2a (if spouse is also requested). For IMF Requests: Enter the First, Middle Initial, and Last Name in the indicated fields. If all characters will not fit, please enter up to 12 for First name and 22 for Last name. For BMF Requests: Enter the company name in the Last Name field. If all characters will not fit, please enter up to 22.

Line 1b/2b (if spouse is also requested). Enter the social security number (SSN) or individual taxpayer identification number (ITIN) for the individual listed on line 1a including the dashes in the correct format, or enter the employer identification number (EIN) for the business listed on line 1a including the dashes in the correct format.

Line 1c/2c (if spouse is also requested). Enter your previous name as shown on your last filed tax return if different than line 1a.

Line 3. Enter your current address in the indicated fields. If you use a P.O. Box, include it and the number in the Current Address field.

Line 4. Enter the address shown on the last return filed if different from the address entered on line 3.

Note: If the addresses on lines 3 and 4 are different and you have not changed your address with the IRS, file Form 8822, Change of Address, or Form 8822-B, Change of Address or Responsible Party — Business, with Form 4506-C.

Line 5b. Enter up to 10 numeric characters to create a unique customer file number that will appear on the transcript. The customer file number cannot contain an SSN, ITIN or EIN. Completion of this line is not required.

Line 5c. Enter up to 10 alpha-numeric characters to create a unique identifier that will show in the mailbox file information. The unique identifier cannot contain an SSN, ITIN or EIN. Completion of this line is not required.

Note. If you use an SSN, we will not input the information and the customer file number or unique identifier will reflect a generic entry of "9999999999".

Line 5d. Enter the Client company name, address, and phone number in the indicated fields. A Client company receives the requested tax transcripts from the IVES participant. If the IVES participant is also the Client company, the IVES participant information should be entered on Line 5a and 5d. These fields cannot be blank or Not Applicable (NA).

Line 6. Enter only one tax form number (1040, 1065, 1120, etc.) per request for all line 6 transcripts request types.

Line 6a. Return Transcript includes most of the line items of a tax return as filed with the IRS. A tax return transcript does not reflect changes made to the account after the return is processed. Transcripts are only available for the following returns: Form 1040 series, Form 1065, Form 1120, Form 1120-H, Form 1120-L, and Form 1120-S. Return transcripts are available for the current year and returns processed during the prior 3 processing years.

Line 6b. Account Transcript contains information on the financial status of the account, such as payments made on the account, penalty assessments, and adjustments made by you or the IRS after the return was filed. Return information is limited to items such as tax liability and estimated tax payments. Account transcripts are available for most returns.

Line 6c. Record of Account provides the most detailed information as it is a combination of the Return Transcript and the Account Transcript. Available for current year and 3 prior tax years.

Line 7. The IRS can provide a transcript that includes data from these information returns: Form W-2, Form 1099 series, Form 1098 series, or Form 5498 series transcript. Enter up to three information return types. If no specific type is requested, all forms will be provided. State or local information is not included with the Form W-2 information. The IRS may be able to provide this transcript information for up to 10 years. Information for the current year is generally not available until the year after it is filed with the IRS. For example, Form W-2 information for 2016, filed in 2017, will likely not be available from the IRS until 2018. If you need Form W-2 information for retirement purposes, you should contact the Social Security Administration at 1-800-772-1213.

Line 8. Enter the end date of the tax year or period requested in mm dd yyyy format. This may be a calendar year, fiscal year or quarter. Enter each quarter requested for quarterly returns. Example: Enter 12/31/2018 for a calendar year 2018 Form 1040 transcript.



You must check the box in the signature area to acknowledge you have the authority to sign and request the information. The form will not be processed if unchecked.

Signature and date. Form 4506-C must be signed and dated by the taxpayer listed on line 1a and, if listed, 2a. The IRS must receive Form 4506-C within 120 days of the date signed by the taxpayer or it will be rejected. Ensure that all applicable lines, including lines 5a through 8, are completed before signing.

Authorized Representative. A representative can sign Form 4506-C for a taxpayer if the taxpayer has specifically delegated this authority to the representative on Form 2848, line 5a, and Form 2848 is attached to the Form 4506-C request. If you are Heir at Law, Next of Kin, or Beneficiary, you must be able to establish a material interest in the estate or trust. If Form 4506-C is signed by a representative, the Authorized Representative check box must be marked.

Electronic Signature. Only IVES participants that opt in to the Electronic Signature usage can accept electronic signatures. Contact the IVES participant for approval and guidance for electronic signatures. If the Form 4506-C is signed electronically, the Electronic Signature check box must be marked.

Individuals. Transcripts listed on line 6 may be furnished to either spouse if jointly filed. Signatures are required for all taxpayers listed on Line 1a and 2a.

Corporations. Generally, Form 4506-C can be signed by:

(1) an officer having legal authority to bind the corporation, (2) any person designated by the board of directors or other governing body, or (3) any officer or employee on written request by any principal officer and attested to by the secretary or other officer. A bona fide shareholder of record owning 1 percent or more of the outstanding stock of the corporation may submit a Form 4506-C but must provide documentation to support the requester's right to receive the information.

Partnerships. Generally, Form 4506-C can be signed by any person who was a member of the partnership during any part of the tax period requested on line 8.

All others. See section 6103(e) if the taxpayer has died, is insolvent, is a dissolved corporation, or if a trustee, guardian, executor, receiver, or administrator is acting for the taxpayer.

Documentation. For entities other than individuals, you must attach the authorization document. For example, this could be the letter from the principal officer authorizing an employee of the corporation or the letters testamentary authorizing an individual to act for an estate.

Privacy Act and Paperwork Reduction Act Notice. We ask for the information on this form to establish your right to gain access to the requested tax information under the Internal Revenue Code. We need this information to properly identify the tax information and respond to your request. You are not required to request any transcript; if you do request a transcript, sections 6103 and 6109 and their regulations require you to provide this information, including your SSN or EIN. If you do not provide this information, we may not be able to process your request. Providing false or fraudulent information may subject you to penalties.

Routine uses of this information include giving it to the Department of Justice for civil and criminal litigation, and cities, states, the District of Columbia, and U.S. commonwealths and possessions for use in administering their tax laws. We may also disclose this information to other countries under a tax treaty, to federal and state agencies to enforce federal nontax criminal laws, or to federal law enforcement and intelligence agencies to combat terrorism.

You are not required to provide the information requested on a form that is subject to the Paperwork Reduction Act unless the form displays a valid OMB control number. Books or records relating to a form or its instructions must be retained as long as their contents may become material in the administration of any Internal Revenue law. Generally, tax returns and return information are confidential, as required by section 6103.

The time needed to complete and file Form 4506-C will vary depending on individual circumstances. The estimated average time is:

Learning about the law or the form 10 min.
Preparing the form 12 min.
Copying, assembling, and sending the form to the IRS 20 min.

If you have comments concerning the accuracy of these time estimates or suggestions for making Form 4506-C simpler, we would be happy to hear from you. You can write to:

Internal Revenue Service
Tax Forms and Publications Division
1111 Constitution Ave. NW, IR-6526
Washington, DC 20224

Do not send the form to this address. Instead, see Where to file on this page.

» THIRD-PARTY AUTHORIZATION FORM

Loan Number

Complete and sign this Third Party Authorization form to authorize someone other than yourself to access your Mortgage Loan Account information. IMPORTANT: Once completed and signed, please mail or fax to:
Mail: Attention: Third Party Authorization | E-115-3 | 5151 Corporate Drive | Troy, MI 48098 Fax: 888-848-1071

Please **PRINT**

Section 1 - Your Information

First Name

Middle Name

Last Name

Last 4 Digits of Social Security Number

Best Phone Number

Section 2 - Authorized Third Party

Expiration date for authorization: ☐ Loan maturity or ☐ Provide Expiration Date: _____

(Note: If no date is selected, the authorization will be valid for two years from the date signed below)

Type of Authorization: ☐ Individual ☐ Company

Authorization Description: ☐ Realtor ☐ Attorney

☐ Appraiser ☐ Other: _____

Name (Please note: It is not necessary to list individual names for a company authorization.)

Address

City

State

Zip

Best Phone Number

Fax

Email

Section 3 - Your Authorization

The authorized third party can:

- Obtain loan details information by telephone
- Discuss payment arrangements with the Collections Department
- Discuss the Loss Mitigation application process
- Submit request to send documents that do not require a fee, such as a Transaction History Ledger, or an Original Appraisal. (can only be mailed to address of record)
- Submit request to re-send letter/package/document, such as a Monthly Statement, 1098, Escrow Analysis Disclosure, Rate/Payment, Change Notice, Loan Sale Transfer Notice, etc. (can only be mailed to address of record.)
- Request research to resolve matters

By signing this form, I authorize the loan servicer to provide loan information regarding the Mortgage Loan Account referenced above to the Authorized Party or to someone claiming to be the Authorized Party. I understand that this Third Party Authorization allows only for information to be provided by telephone and the actions described above. The loan servicer may reject this or any other Third Party Authorization or refuse to recognize any request for information from the Authorized Party. This Third Party Authorization shall remain in effect until I revoke this authorization or until it expires as indicated above. I or any other borrower on this loan may revoke this Third Party Authorization at any time in writing via fax or mail.

In the event your loan is transferred to a new servicer, the authorization established by this form will no longer be effective. Our liability/obligations remain to the customer and the presence of a representative should not create additional direct or derivative liability for the Bank.

Borrower Signature

Date

Co-borrower Signature

Date



5151 CORPORATE DR
TROY MI 48098-2639
RETURN SERVICE REQUESTED



S-SFFLAG10 L-DE202R
PL41YV00300041 - 808105090 I00842

ENRIQUE JAVIER
37 BIRCH HILL RD
BRIDGEWATER MA 02324

Loan #



Property Address:

37 Birch Hill Rd
Bridgewater MA 02324

December 18, 2024

- **This is an important notice concerning your right to live in your home. Have it translated at once.**
- **Esta carta explica sus derechos legales para permanecer en su propiedad de vivienda. Por favor traduzca esta notificacion inmediatamente.**
- **Este é um aviso importante em relação ao seu direito de morar na sua residência. Por favor, tem traduzido imediatamente.**
- **C'est une notification importante concernant votre droit de vivre chez vous. Faites-la traduire immédiatement.**
- **这是一则关于您居住权的重要通知, 请儘快安排翻译**

90-Day Right to Cure Your Mortgage Default

December 18, 2024

Sent Via Certified Mail and First-Class Mail

ENRIQUE JAVIER
37 BIRCH HILL RD
BRIDGEWATER MA 02324

RE: 37 Birch Hill Rd Bridgewater MA 02324; loan [REDACTED] with Lakeview Loan Servicing, Llc, as mortgagee; Mortgage Broker/Loan Originator, NOT APPLICABLE/JENNIFER MORRISON

To: ENRIQUE JAVIER

We are contacting you because you did not make your monthly loan payments due on 11/1/24, 12/1/24 to Flagstar Bank, N.A. as servicer. You must pay the past due amount of \$6,974.00 on or before March 18, 2025, which is 90 days from the date of this notice. The past due amount on the date of this notice is specified below:

Current Due Date of Loan:	November 01, 2024
Total of all Unpaid Payments:	\$6,811.66
Total of Unpaid Late Fees:	\$162.34
Total of Unpaid Other Fees:	\$0.00
Less - Partial Payment Balance:	\$0.00
TOTAL DUE:	\$6,974.00

Unpaid Payment Breakdown:

11/01/24 - \$3,405.83
12/01/24 - \$3,405.83

If you pay the past due amount, and any additional monthly payments, late charges or fees that may become due between the date of this notice and the date when you make your payment, your account will be considered up-to-date and you can continue to make your regular monthly payments.

Make your payment directly to:

Payment Processing, P.O. Box 660263, Dallas, TX, 75266-0263.

Please consider the following:

- You should contact the Homeownership Preservation Foundation (888-995-HOPE) to speak with counselors who can provide assistance and may be able to help you work with your lender to avoid foreclosure.
- If you are a MassHousing borrower, you may also contact MassHousing (888-843-6432) to determine if you are eligible for additional assistance. There may be other homeownership assistance available through your lender or servicer.
- You may also contact the Division of Banks (617-956-1500) or visit www.mass.gov/foreclosures to find a foreclosure prevention program near you.
- After March 18, 2025, you can still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place. Depending on the terms of the loan, there may also be other ways to avoid foreclosure, such as selling your property, refinancing your loan, or voluntarily transferring ownership of the property to Lakeview Loan Servicing, LLC.

If you do not pay the total past due amount of \$6,974.00 and any additional payments that may become due by March 18, 2025, you may be evicted from your home after a foreclosure sale. If Lakeview Loan Servicing, LLC forecloses on this property, it means the mortgagee or a new buyer will take over the ownership of your home.

If you have questions, or disagree with the calculation of your past due balance, please contact Flagstar Bank at (800)393-4887 Monday through Friday, 8:30 a.m. - 9 p.m. ET, or Collections Department W-110-2, 5151 Corporate Drive, Troy, MI 48098.

Sincerely,

Bella Kharson
Collections Department
Flagstar Bank, N.A.

Enclosed with this notice, there may be additional important disclosures related to applicable laws and requirements that you should carefully review.

- This is an important notice concerning your right to live in your home. Have it translated at once.
- Esta carta explica sus derechos legales para permanecer en su propiedad de vivienda. Por favor traduzca esta notificacion inmediatamente.
- Este é um aviso importante em relação ao seu direito de morar na sua residência. Por favor, tem traduzido imediatamente.
- C'est une notification importante concernant votre droit de vivre chez vous. Faites-la traduire immédiatement.
- 这是一则关于您居住权的重要通知, 请儘快安排翻译

RIGHT TO REQUEST A MODIFIED MORTGAGE LOAN

December 18, 2024

Sent Via Certified Mail and First Class Mail

ENRIQUE JAVIER
37 BIRCH HILL RD
BRIDGEWATER MA 02324

RE: 37 Birch Hill Rd Bridgewater MA 02324; loan [REDACTED] with Lakeview Loan Servicing, Llc, as mortgagee.

To: ENRIQUE JAVIER

We are contacting you because our records indicate that you are eligible to request a modification of your mortgage with Flagstar Bank, N.A. If you want to request a loan modification or other foreclosure alternative option, you must complete and return the enclosed Mortgage Modification Options form along with any supporting information no later than January 17, 2025. The Mortgage Modification Options form and any supporting documents must be returned by certified mail or similar service to Flagstar Bank as servicer. We will respond to your request within 30 days of its receipt.

Please be aware this notice of the Right to Request a Modified Mortgage Loan is different from the Right to Cure Your Mortgage Default notice that you may have already received. *The enclosed Mortgage Modification Options form provides you with four choices. These choices impact the options under the Right to Cure notice and should be carefully considered.* If you do not want to request a loan modification, you must still return the enclosed Mortgage Modification Options form. Please keep a copy of everything you send to us and keep proof of mailing the materials to us.

If you do not return the enclosed Mortgage Modification Options form and a completed loan modification application by January 17, 2025, your right to cure your mortgage default will end on March 18, 2025.

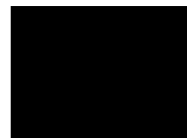
If you have questions, please contact Flagstar Bank at (800)393-4887 Monday through Friday, 8:30 a.m. - 9 p.m. ET, or Collections Department, W-110-2, 5151 Corporate Drive, Troy MI 48098. If you would like assistance from the Attorney General's Office, you may contact the HomeCorps hotline at (617) 573-5333 to speak with a loan modification specialist who can assist you. We suggest you mention this notice when you call.

Sincerely,

Bella Kharson
Collections Department
Flagstar Bank, N.A.

Enclosed with this notice, there may be additional important disclosures related to applicable laws and requirements that you should carefully review.

MORTGAGE MODIFICATION OPTIONS



You must return this form in the enclosed envelope by January 17, 2025.

ENRIQUE JAVIER
37 BIRCH HILL RD
BRIDGEWATER MA 02324

RE: 37 Birch Hill Rd Bridgewater MA 02324; loan 

To: ENRIQUE JAVIER

You must check one of the following boxes to notify Flagstar Bank ,N.A. of how you would like to proceed.

- ☐ I would like to request a loan modification. I have attached a complete statement of my income and list of assets, total debts and obligations as requested by the creditor in the form(s) which accompanied the Right to Request a Modified Mortgage Loan Notice. I maintain my right to a 90 day period to cure my mortgage default.
- ☐ I would like to request a different foreclosure alternative such as a short sale or deed-in-lieu of foreclosure. I maintain my right to a 90 day period to cure my mortgage default.
- ☐ I do not want to request a loan modification or any foreclosure alternative. I maintain my right to a 90 day period to cure my mortgage default.
- ☐ I want to waive my right to cure the default on my mortgage loan and proceed to foreclosure. I understand that by choosing this option I waive the remaining time, if any, of my right to cure period.

Borrower Name

Date

Borrower Telephone Number



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Loss Mitigation Application Homeowner Checklist

For Your Information Only - Do Not Return with your Loss Mitigation Application

GET STARTED – use this checklist to ensure you have completed all required forms and have the right information.

Step 1 ☐ **Review the information provided to help you understand your options, responsibilities, and next steps:**

☐ Avoiding Foreclosure ☐ Frequently Asked Questions ☐ Beware of Foreclosure Rescue Scams

Step 2 ☐ **Complete and sign the enclosed Loss Mitigation Application.** Must be signed by all borrowers on the mortgage (notarization is not required) and must include:

☐ All income, expenses, and assets for each borrower.

☐ An explanation of the financial hardship that makes it difficult to pay the mortgage.

☐ Your acknowledgment and agreement that all information that you provide is true and accurate.

Step 3 ☐ **Complete and sign a dated copy of the enclosed IRS 4506-C Form.**

☐ For each borrower, please submit a signed, dated copy of IRS 4506-C Form.

☐ For borrowers who filed their tax returns jointly, please submit one IRS 4506-C Form signed and dated by both joint filers.

Step 4 ☐ **Provide the required Hardship Documentation that will be used to verify your hardship.**

☐ Follow the instructions set forth on the Loss Mitigation Application Form (enclosed).

Step 5 ☐ **Provide required Income Documentation. This documentation will be used to verify your hardship and all of your income (Notice: Alimony, child support, or separate maintenance income does not need to be revealed if you choose not to have it considered for repaying this loan).**

☐ Follow the instructions set forth on the Loss Mitigation Application Form (enclosed).

☐ You may also disclose any income from a household member who is not on the promissory note (non-borrower contributor), such as a relative, spouse, domestic partner, or fiancé who occupies the property as a primary residence. If you elect to disclose and rely upon this income to qualify, the required income documentation is the same as the income documentation required for a borrower. See Page 4 of the Loss Mitigation Application Form for specific details on income documentation.

Step 6 ☐ **Gather and send completed documents (signed and dated)—your Loss Mitigation Application.**

You must send in all required documentation listed in steps 2-4 above, and summarized below:

- **Loss Mitigation Application Form (enclosed).**
- **Hardship Documentation as outlined on Page 3 of the Loss Mitigation Application Form (enclosed).**
- **Income Documentation as outlined on Page 4 of the Loss Mitigation Application Form (enclosed).**
- **Detailed Loss Mitigation Application—Financial Breakdown Form (enclosed).**
- **IRS 4506-C Form (enclosed).**
- **Optional: Third Party Authorization (enclosed).**

Please send all documents above to us using any of the methods below:

By Mail:

Loss Mitigation W-110-2
5151 Corporate Drive
Troy, MI 48098

Online:

FLAGSTAR.COM/MYLOANS

Toll-Free Fax:

(866) 234-9845

IMPORTANT REMINDERS:

- ☐ If you cannot provide the documentation within the time frame provided, have other types of income not specified on Page 4 of the Loss Mitigation Application, cannot locate some or all of the required documents, OR have any questions, please call us at (800)393-4887, Monday through Friday, 8:30 a.m. - 9 p.m. ET.
- ☐ Keep a copy of all documents and proof of mailing/submission for your records. **Don't send original income or hardship documents. Copies are acceptable.**
- ☐ You can complete the loss mitigation application conveniently online through your account (FLAGSTAR.COM/MYLOANS).

Questions? Call us at (800)393-4887

Information on Avoiding Foreclosure

For Your Information Only - Do Not Return with Your Loss Mitigation Application

Mortgage Programs Are Available to Help

There are a variety of programs available to help you resolve your delinquency and keep your home. You may be eligible to refinance or modify your mortgage to make your payments and terms more manageable, for instance, lowering your monthly payment to make it more affordable. Or, if you have missed a few payments, you may qualify for a temporary (or permanent) solution to help you get your finances back on track. Depending on your circumstances, staying in your home may not be possible. In this case, a short sale or deed-in-lieu of foreclosure may be a better choice than foreclosure – see the table below for more information:

OPTIONS TO STAY IN YOUR HOME	OVERVIEW	BENEFIT
Refinance	Receive a new loan with lower interest rate or other favorable terms.	Makes your payment or terms more affordable.
Reinstatement	Pay the total outstanding payments owed, in a lump sum, by a specific date. This may follow a forbearance plan as described below.	Allows you to avoid foreclosure by bringing your mortgage current if you can show you have funds that will become available at a specific date in the future.
Repayment Plan	Pay back your past-due payments together with your regular payments over an extended period of time.	Allows you time to catch up on late payments without having to come up with a lump sum.
Forbearance Plan	Make reduced mortgage payments or no mortgage payments for a specific period of time.	Have time to improve your financial situation and get back on your feet.
Modification	Receive modified terms of your mortgage to make it more affordable or manageable after successfully making payments during a "trial period" (that is, completing a three- or four-month trial period plan) that approximate the modified payment.	Permanently modifies your mortgage so that your payments or terms are more manageable as a permanent solution to a long-term or permanent hardship.
OPTIONS TO LEAVE YOUR HOME	OVERVIEW	BENEFIT
Short Sale	Sell your home and pay off a portion of your mortgage balance when you owe more on the home than it is worth.	Allows you to transition out of your home without going through foreclosure. In some cases, relocation assistance may be available.
Mortgage Release (Deed-in-Lieu of Foreclosure)	Transfer the ownership of your property to us.	Allows you to transition out of your home without going through foreclosure. In some cases, relocation assistance may be available.

We Want to Help

Take action and gain peace of mind and control of your situation. Complete and return the Loss Mitigation Application to start the process of getting the help you need now.

Frequently Asked Questions

For Your Information Only - Do Not Return with Your Loss Mitigation Application

1. Why Did I Receive this Package?

You received this package because you have either requested loss mitigation assistance, or because we have not received one or more of your monthly mortgage payments and want to help you keep your home if at all possible. By completing this package, we can work together at exploring options that may help resolve any temporary or long-term financial challenge you face in making your mortgage payments.

2. Where Can I Find More Information on Foreclosure Prevention?

Please see the Avoiding Foreclosure enclosure in this package for more information, or you can call us at **(800)393-4887**.

3. What if I Don't Want to Stay in My Home Anymore?

You may have good reasons for needing to leave your property, such as a job relocation, a divorce, financial hardship due to the death of a borrower, or some other reason preventing you from keeping your property. If you intend to transition out of your home, please indicate that you want to sell or vacate the property on page 2 of the attached Loss Mitigation Application and we may first evaluate you for a short sale or Mortgage Release (deed-in-lieu of foreclosure). Even if you are approved for one of those workout solutions, we may consider you for a mortgage loan modification.

4. Will it Cost Money to Get Help?

There should never be a fee from your servicer or qualified counselor to obtain assistance or information about foreclosure prevention options. However, foreclosure prevention has become a target for scam artists. Be wary of companies or individuals offering to help you for a fee, and never send a mortgage payment to any company other than the one listed on your monthly mortgage statement or one designated to receive your payments under a state assistance program.

5. What Happens Once I Have Sent the Loss Mitigation Application to You?

We will send you a written notice within five business days of our receipt of your Loss Mitigation Application to confirm that we have received your package and will review it to determine whether it is complete or incomplete. If we determine there is missing information or documentation, we also will send you an incomplete information notice. We cannot guarantee that you will receive any (or a particular type of) assistance.

Within 30 days of receipt of a complete Loss Mitigation Application, we will let you know which foreclosure alternatives, if any, are available to you and will inform you of your next steps to accept our offer. However, if we receive your complete Loss Mitigation Application 37 calendar days or less before a scheduled foreclosure sale date, we will strive to process your request as quickly as possible, but you may not receive a notice of incompleteness or a decision on your request prior to sale. Please submit your Loss Mitigation Application as soon as possible.

6. What Happens to My Mortgage While You Are Evaluating My Loss Mitigation Application?

You remain obligated to make all mortgage payments as they come due, even while we are evaluating the types of assistance that may be available.

7. Will the Foreclosure Process Begin if I Do Not Respond to this Letter?

Depending on the status of your loan if you do not respond to this letter, we may refer your loan to foreclosure in accordance with your mortgage loan documents and applicable law.

8. Should I Still Contact You if I Have Waited Too Long and My Property Has Been Referred to an Attorney for Foreclosure?

Yes, the sooner the better!

FREQUENTLY ASKED QUESTIONS continued

9. What if My Property is Scheduled for a Foreclosure Sale in the Future?

If we receive a complete Loss Mitigation Application 37 calendar days or less before a scheduled foreclosure sale, there is no guarantee we can evaluate you for a foreclosure alternative in time to stop the foreclosure sale. Even if we are able to approve you for a foreclosure alternative prior to a sale, a court with jurisdiction over the foreclosure proceeding (if any) or public official charged with carrying out the sale may not halt the scheduled sale.

10. Will My Property be Sold at a Foreclosure Sale if I Accept a Foreclosure Alternative?

No. The property will not be sold at a foreclosure sale if you accept an offer for an alternative to foreclosure and comply with all requirements.

11. Will My Credit Report Be Affected by My Late Payments or Being in Default?

The delinquency status of your loan will continue to be reported to credit reporting agencies as well as your entry into a Repayment Plan, Forbearance Plan, or Trial Period Plan in accordance with the requirements of the Fair Credit Reporting Act and the Consumer Data Industry Association requirements.

12. Will My Credit Score Be Affected if I Accept a Foreclosure Prevention Option?

While the effect on your credit will depend on your individual credit history, credit scoring companies generally would consider your entry into a plan with reduced payments as increasing your credit risk. As a result, entering into a plan with reduced payments may adversely affect your credit score, particularly if you are current on your mortgage or otherwise have a good credit score. However, bringing your loan current through a reinstatement, Repayment Plan, or loan modification and continuing to make timely payments may improve your credit score over time.

13. Is Foreclosure Prevention Counseling Available?

Yes, HUD-approved counselors are available to provide you with the information and assistance you may need to avoid foreclosure. You can use the search tool at hud.gov/offices/hsg/sfh/hcc/fc/ to find a counselor near you.

14. I Have Seen Ads and Flyers From Companies Offering to Help Me Avoid Foreclosure for a Fee. Are These Companies on the Level?

Foreclosure prevention has become a target for scam artists. We suggest using the HUD website referenced in question 13 to locate a counselor near you. Also, please refer to the enclosed "Beware of Foreclosure Rescue Scams" document for more information.

BEWARE OF FORECLOSURE RESCUE SCAMS - TIPS & WARNING SIGNS

For Your Information Only - Do Not Return with Your Loss Mitigation Application

Scam artists are stealing millions of dollars from distressed homeowners by promising immediate relief from foreclosure, or demanding cash for counseling services when HUD-approved counseling agencies provide the same services for FREE. If you receive an offer, information or advice that sounds too good to be true, it probably is. Don't let them take advantage of you, your situation, your house or your money. **Remember, help is FREE.**

How to Spot a Scam - beware of a company or person who:

- Asks for a fee in advance to work with your lender to modify, refinance, or reinstate your mortgage.
- Guarantees they can stop a foreclosure or get your loan modified.
- Advises you to stop paying your mortgage company and pay them instead.
- Pressures you to sign over the deed to your home or sign any paperwork that you haven't had a chance to read or don't fully understand.
- Claims to offer "government-approved" or "official government" loan modifications.
- Asks you to release personal financial information online or over the phone and you have not been working with this person and/or do not know them.

How to Report a Scam - do one of the following:

- Call (888) 995-HOPE (4673) and tell the counselor about your situation and that you believe you got scammed or know of a scam.
- Call the Federal Trade Commission at (877) 382-4357 to report the suspected scam.
- Contact your state's attorney general. Visit naag.org/attorneys_general.php to find the attorney general for your state.
- Contact your state's Consumer Protection Offices. Visit usa.gov/state-consumer to find the Consumer Protection Offices for your state.

The Loan Modification Scam Prevention Network is a national coalition of governmental and private organizations led by Fannie Mae, Freddie Mac, NeighborWorks America™ and the Lawyers' Committee for Civil Rights Under Law.

Loss Mitigation Application

If you are having mortgage payment challenges, please complete and submit this application, along with the required documentation, via mail to: **Loss Mitigation Department, W-110-2, 5151 Corporate Dr., Troy, MI 48098**, online: **FLAGSTAR.COM/MYLOANS** or fax: **(866) 234-9845**. We will contact you within five business days to acknowledge receipt and let you know if you need to send additional information or documents. Please include your loan number on all pages submitted for review.

We will use the information you provide to help us identify the assistance you may be eligible to receive. If you need help completing this application, please call us at **(800)393-4887**.

For a list of HUD-approved housing counseling agencies that can provide foreclosure prevention information, contact one of the following federal government agencies:

- The U.S. Department of Housing and Urban Development (HUD) at (800) 569-4287 or hud.gov/counseling.
- The Consumer Financial Protection Bureau (CFPB) at (855) 411-2372 or consumerfinance.gov/mortgagehelp.

If you need assistance with translation or other language assistance, HUD-approved housing counseling agencies may be able to assist you. These services are provided without charge.

Borrower Information

Borrower's Name: _____

Social Security Number (Last 4 Digits): _____

Email Address: _____

Primary Phone Number: _____ ☐ Cell ☐ Home ☐ Work ☐ Other

Alternate Phone Number: _____ ☐ Cell ☐ Home ☐ Work ☐ Other

Co-Borrower's Name: _____

Social Security Number (Last 4 Digits): _____

Email Address: _____

Primary Phone Number: _____ ☐ Cell ☐ Home ☐ Work ☐ Other

Alternate Phone Number: _____ ☐ Cell ☐ Home ☐ Work ☐ Other

Preferred Contact Method (Choose All That Apply): ☐ Cell phone ☐ Home phone ☐ Work phone ☐ Email

Is either borrower on active duty with the military (including the National Guard and Reserves), the dependent of a borrower on active duty, or the surviving spouse of a member of the military who was on active duty at the time of death? ☐ Yes ☐ No

Non-Borrower Contributor Information

If a non-borrower :

- has agreed to include their income in the review of this Loss Mitigation Application,
- will use their income to contribute toward the mortgage payment, AND
- occupies the property as their primary residence

this section must be completed, the non-borrower contributor's financial information must be provided where indicated throughout the application, and the non-borrower contributor must sign the Borrower, Co-Borrower, and Non-Borrower Contributor Certification and Agreement.

Non-Borrower Contributor's Name: _____

Full Social Security Number: _____ Date of Birth: _____

What percentage of your income will you contribute to household expenses and mortgage payments: _____%

Property Information

Property Address Street: _____

City: _____ State: _____ ZIP Code: _____

Mailing Address (If Different From the Property Address)

Street: _____

City: _____ State: _____ ZIP Code: _____

- The property is currently: ☐ A primary residence ☐ A second home ☐ An investment property
- The property is (select all that apply): ☐ Owner occupied ☐ Renter occupied ☐ Vacant
- Is the property subject to condominium or homeowners association (HOA) fees? ☐ Yes ☐ No – If yes, provide the most-recent HOA statement along with the other required documentation requested in this application.
- I want to: ☐ Keep the property ☐ Sell the property ☐ Transfer ownership of the property to the servicer ☐ Undecided
- Is the property listed for sale? ☐ Yes ☐ No – If yes, please refer to the Short Sale Information section below.

Short Sale Information

A short sale is an option that permits the sale of your property for less than the balance remaining on your mortgage loan. If you are interested in pursuing this option, and have your property listed for sale, please provide the information listed below along with the other required documentation requested in this application based on your current situation.

PROPERTY STATUS

REQUIRED DOCUMENTATION

Property Listed—Offer Not Received

- Active MLS
- Active Listing Agreement
- Third Party Authorization Form

Property Listed—Offer Received

- Active MLS
- Active Listing Agreement
- Third Party Authorization Form
- Purchase Agreement (30+ Days to Closing)
- Preliminary Closing Disclosure (HUD-1) (30+ Days to Closing)
- Buyer's Pre-Approval (30+ Days to Closing)
- Buyer's Articles of Incorporation (If Applicable)

HARDSHIP INFORMATION

The hardship causing mortgage payment challenges began on approximately (date) _____ and is believed to be:

- ☐ Short-term (under 6 months).
☐ Long-term or permanent (greater than 6 months).
☐ Resolved as of (date) _____.

TYPE OF HARDSHIP (CHECK ALL THAT APPLY)	REQUIRED HARDSHIP DOCUMENTATION
☐ Unemployment Actively Seeking Employment? ☐ Yes ☐ No	☒ A signed and dated written explanation describing the details of the hardship and any relevant documentation.
☐ Reduction in income: a hardship that has caused a decrease in your income due to circumstances outside your control (e.g., elimination of overtime, reduction in regular working hours, a reduction in base pay)	☒ A signed and dated written explanation describing the details of the hardship and any relevant documentation.
☐ Increase in housing-related expenses: a hardship that has caused an increase in your housing expenses due to circumstances outside your control (e.g., uninsured losses, increased property taxes, HOA special assessment)	☒ A signed and dated written explanation describing the details of the hardship and any relevant documentation.
☐ Disaster (natural or man-made) impacting the property or the borrower's place of employment	☒ A signed and dated written explanation describing the details of the hardship and any relevant documentation.
☐ Long-term or permanent disability, or serious illness of a borrower/co-borrower or dependent family member	☒ Written statement from the borrower, or other documentation verifying disability or illness. ☒ Note: Detailed medical information is not required, and information from a medical provider is not required.
☐ Divorce or legal separation	☒ Final divorce decree or final separation agreement. ☒ Recorded quitclaim deed.
☐ Separation of borrowers unrelated by marriage, civil union, or similar domestic partnership under applicable law	☒ Legally-binding agreement evidencing that the non-occupying borrower or co-borrower has relinquished all rights to the property. ☒ Recorded quitclaim deed.
☐ Death of borrower or death of either the primary or secondary wage earner	☒ Death certificate.
☐ Distant employment transfer/relocation	☒ For active duty service members: Permanent Change of Station (PCS) orders or letter showing transfer. ☒ For employment transfers/new employment: A copy of the signed offer letter or notice from employer showing transfer to a new location or written explanation if employer documentation not applicable, AND ☒ Documentation that reflects the amount of any relocation assistance provided (not required for PCS orders).
☐ Other – hardship that is not covered above: _____ _____ _____	☒ A signed and dated written explanation describing the details of the hardship and any relevant documentation.

Income

Please enter all borrower and non-borrower contributor income amounts in middle column.

MONTHLY TOTAL APPLICANT INCOME TYPE	AMOUNT FOR ALL APPLICANTS	REQUIRED INCOME DOCUMENTATION
Gross (pre-tax) wages, salaries and overtime pay, commissions, tips, and bonuses	\$	■ Most-recent pay stub(s) and documentation of year-to-date earnings and deductions: ☐ Biweekly Pay: Three most-recent paystubs ☐ Weekly Pay: Five most-recent paystubs ☐ Semi-monthly Pay: Two most-recent paystubs ☐ Monthly Pay: most-recent paystub
Self-employment income	\$	■ Most-recent signed and dated quarterly or year-to-date profit/loss statement (business-related income and expenses only) AND ■ Three most-recent bank statements corresponding with the profit/loss statement income amounts AND ■ Most-recent complete and signed business tax return OR ■ Most-recent complete and signed individual federal income tax return
Unemployment benefit	\$	■ Unemployment award letter
Social Security or disability income, pension, death benefits, adoption assistance, housing allowance, and other public assistance	\$	■ Award letters or other documentation showing the amount and frequency of the benefits AND ■ Two most-recent bank statements showing deposit amounts AND ■ If received on behalf of a minor: Provide the date of birth for each minor (MM/DD/YYYY) - o DOB: _____ - o DOB: _____ - o DOB: _____
Rental income (rents received, less expenses other than mortgage expense)	\$	■ Signed Lease Agreement and most-recent tax returns AND ■ Three most-recent bank statements demonstrating receipt of rent OR ■ Three most-recent deposited rent checks
Other sources of income not listed above (Note: Only include alimony, child support, or separate maintenance income if you choose to have it considered for repaying this loan)	\$	■ Other documentation showing the amount and frequency of the income (e.g., divorce decree, child support order) AND ■ Two most-recent bank statements showing receipt of income ■ Child Support income only: Provide the date of birth for each child (MM/DD/YYYY) - o DOB: _____ - o DOB: _____ - o DOB: _____

Borrower, Co-Borrower, and Non-Borrower Contributor Certification and Agreement

1. I certify and acknowledge that all of the information in this Loss Mitigation Application is truthful, and any hardship I identified contributed to the need for mortgage relief. Knowingly submitting false information may violate federal and other applicable law.
2. I agree to provide the servicer with all required documents, including any additional supporting documentation as requested, and will respond in a timely manner to all servicer or authorized third party* communications.
3. I acknowledge and agree that the servicer is not obligated to offer me assistance based solely on the representations in this document or other documentation submitted in connection with this request.
4. I consent to the servicer or authorized third party* obtaining a current credit report. Credit reports are required for borrowers, co-borrowers, and non-borrower contributors.
5. I consent to the disclosure by the servicer, authorized third party,* or any investor/guarantor of the mortgage loan(s), of any personal information collected during the mortgage assistance process and of any information about any relief I receive, to any third party that deals with the first lien or subordinate lien (if applicable) mortgage loan(s), including Fannie Mae, Freddie Mac, or any investor, insurer, guarantor, or servicer of the mortgage loan(s) or any companies that provide support services to them, for purposes permitted by applicable law. Personal information may include, but is not limited to: (a) name, address, telephone number, (b) Social Security number, (c) credit score, (d) income, and (e) payment history and information about account balances and activity.
6. I agree that the terms of this certification and agreement will apply to any modification trial period plan, repayment plan, or forbearance plan that may be offered based on this application. If I receive an offer for a modification trial period plan or repayment plan, I agree that the first timely payment under the plan will serve as acceptance of the plan.
7. I understand, acknowledge, and agree that the servicer and other loan participants can use and share tax return information for purposes of servicing a loan or as otherwise permitted by applicable laws, including state and federal privacy and data security laws. The servicer includes the servicer's affiliates, agents, service providers and any of aforementioned parties' successors and assigns. The other loan participants include any actual or potential owners of a loan resulting from the loan application, loss mitigation application, or acquirers of any beneficial or other interest in the loan, any mortgage insurer, guarantor, any servicers or service providers for these parties and any of aforementioned parties' successors and assigns.
8. I consent to being contacted concerning this application for mortgage assistance at any telephone number, including mobile telephone number, or email address I have provided to the lender, servicer, or authorized third party.*

* An authorized third party may include, but is not limited to, a housing counseling agency, Housing Finance Agency (HFA) or other similar entity that is assisting me in obtaining a foreclosure prevention alternative.

Borrower Signature: _____ Date: _____

Co-Borrower Signature: _____ Date: _____

Non-Borrower Contributor Signature: _____ Date: _____

Please submit your completed application, together with the required documentation, via mail to: **Loss Mitigation Department, W-110-2, 5151 Corporate Dr., Troy, MI 48098**, online: **FLAGSTAR.COM/MYLOANS** or fax: **(866) 234-9845**. We will contact you within five business days to acknowledge receipt and let you know if you need to send additional information or documents. Please include loan number on all pages submitted for review.

We will use the information you provided to help us identify the assistance you may be eligible to receive.

Loss Mitigation Application—Financial Breakdown

Please include all items you are currently responsible for, even if you are not current on those payments. Some expense information, such as credit cards and loans, will be obtained from credit reports.

How many people live in the household? (including yourself)

INCOME	BORROWER	CO-BORROWER	NON-BORROWER CONTRIBUTOR
Monthly Net Income from Employment	\$	\$	\$
Frequency of Pay Period			
Monthly Government Benefits & Insurance Income	\$	\$	\$
Monthly Unemployment Income	\$	\$	\$
Monthly Rental Income	\$	\$	\$
Monthly Alimony Income	\$	\$	\$
Monthly Child Support Income	\$	\$	\$
Monthly Net Income from Employment	\$	\$	\$
Other Monthly Income <i>Please describe other below:</i>	\$	\$	\$
Total Monthly Income	\$	\$	\$

MONTHLY FAMILY EXPENSES (OUT OF POCKET)	BORROWER	CO-BORROWER	NON-BORROWER CONTRIBUTOR
Monthly Auto Maintenance/Gas	\$	\$	\$
Monthly Auto Insurance	\$	\$	\$
Monthly Food	\$	\$	\$
Monthly Medical/Dental (Out of Pocket Costs, Not Premiums)	\$	\$	\$
Monthly Alimony Paid	\$	\$	\$
Monthly Child Support Paid	\$	\$	\$
Monthly Child Care	\$	\$	\$
Monthly Entertainment	\$	\$	\$
Other Monthly Family Expenses <i>Please describe other below:</i>	\$	\$	\$
Total Monthly Family Expenses	\$	\$	\$

HOME EXPENSES: ALL RESIDENCES	BORROWER	CO-BORROWER	NON-BORROWER CONTRIBUTOR
1 st Lien Monthly Payment	\$	\$	\$
2 nd Lien Monthly Payment	\$	\$	\$
Monthly Rent Payment	\$	\$	\$
Monthly HOA Dues	\$	\$	\$
Monthly Property Taxes & Insurance (If Not Included in the Payment)	\$	\$	\$
Monthly Cable TV/Streaming	\$	\$	\$
Monthly Electricity	\$	\$	\$
Monthly Natural Gas	\$	\$	\$
Monthly Phone/Internet	\$	\$	\$
Monthly Sewer/Water	\$	\$	\$
Other Monthly Home Expenses <i>Please describe other below:</i>			
Total Primary Residence Expenses	\$	\$	\$

ASSETS	VALUE	AMOUNT OWED
Property 1	\$	\$
Property 2	\$	\$
401(k) Accounts	\$	\$
Checking Account(s) & Cash on Hand	\$	\$
Savings, Money Market, & CD Accounts	\$	\$
IRA/Keogh Accounts	\$	\$
Stocks/Bonds (Non-Retirement Accounts)	\$	\$
Other Real Estate	\$	\$
Other Assets <i>Please describe other below:</i>		

Borrower Signature

Date

Co-Borrower Signature

Date

Non-Borrower Contributor Signature

Date

Form 4506-C (October 2022)	Department of the Treasury - Internal Revenue Service IVES Request for Transcript of Tax Return	OMB Number 1545-1872
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Do not sign this form unless all applicable lines have been completed.
Request may be rejected if the form is incomplete or illegible.
For more information about Form 4506-C, visit www.irs.gov and search IVES.

1a. Current name			2a. Spouse's current name (if joint return and transcripts are requested for both taxpayers)		
i. First name	ii. Middle initial	iii. Last name/BMF company name	i. Spouse's first name	ii. Middle initial	iii. Spouse's last name
1b. First taxpayer identification number (see instructions)			2b. Spouse's taxpayer identification number (if joint return and transcripts are requested for both taxpayers)		
1c. Previous name shown on the last return filed if different from line 1a			2c. Spouse's previous name shown on the last return filed if different from line 2a		
i. First name	ii. Middle initial	iii. Last name	i. First name	ii. Middle initial	iii. Last name
3. Current address (including apt., room, or suite no.), city, state, and ZIP code (see instructions)					
a. Street address (including apt., room, or suite no.)			b. City	c. State	d. ZIP code
4. Previous address shown on the last return filed if different from line 3 (see instructions)					
a. Street address (including apt., room, or suite no.)			b. City	c. State	d. ZIP code
5a. IVES participant name, ID number, SOR mailbox ID, and address					
i. IVES participant name Equifax Workforce Solutions LLC			ii. IVES participant ID number 300005		iii. SOR mailbox ID Equifax01
iv. Street address (including apt., room, or suite no.) 11432 Lackland Rd.			v. City St. Louis	vi. State MO	vii. ZIP code 63146
5b. Customer file number (if applicable) (see instructions)			5c. Unique identifier (if applicable) (see instructions)		
5d. Client name, telephone number, and address (this field cannot be blank or not applicable (NA))					
i. Client name					ii. Telephone number
iii. Street address (including apt., room, or suite no.)			iv. City	v. State	vi. ZIP code

Caution: This tax transcript is being sent to the third party entered on Line 5a and/or 5d. Ensure that lines 5 through 8 are completed before signing. (see instructions)

6. Transcript requested. Enter the tax form number here (1040, 1065, 1120, etc.) and check the appropriate box below. Enter only one tax form number per request for line 6 transcripts

a. Return Transcript ☐ **b. Account Transcript** ☐ **c. Record of Account** ☐

7. Wage and income transcript (W-2, 1098-E, 1099-G, etc.) ☐

a. Enter a max of three form numbers here; if no entry is made, all forms will be sent.

b. Mark the checkbox for taxpayer(s) requesting the wage and income transcripts. If no box is checked, transcripts will be provided for all listed taxpayers

Line 1a ☐ Line 2a ☐

8. Year or period requested. Enter the ending date of the tax year or period using the mm dd yyyy format (see instructions)

/ / / / / / / /

Caution: Do not sign this form unless all applicable lines have been completed.

Signature of taxpayer(s). I declare that I am either the taxpayer whose name is shown on line 1a or, if applicable, line 2a, or a person authorized to obtain the tax information requested. If the request applies to a joint return, at least one spouse must sign; however, if both spouses' names and TINs are listed in lines 1a-1b and 2a-2b, both spouses must sign the request. If signed by a corporate officer, 1 percent or more shareholder, partner, managing member, guardian, tax matters partner, executor, receiver, administrator, trustee, or party other than the taxpayer, I certify that I have the authority to execute Form 4506-C on behalf of the taxpayer. **Note:** This form must be received by IRS within 120 days of the signature date.

☐ **Signatory attests that he/she has read the above attestation clause and upon so reading declares that he/she has the authority to sign the Form 4506-C. See instructions.**

Sign Here	Signature for Line 1a (see instructions)		Date	Phone number of taxpayer on line 1a or 2a
	☐ Form 4506-C was signed by an Authorized Representative		☐ Signatory confirms document was electronically signed	
	Print/Type name			
	Title (if line 1a above is a corporation, partnership, estate, or trust)			
	Spouse's signature (required if listed on Line 2a)			Date
	☐ Form 4506-C was signed by an Authorized Representative		☐ Signatory confirms document was electronically signed	
Print/Type name				

Instructions for Form 4506-C, IVES Request for Transcript of Tax Return

Section references are to the Internal Revenue Code unless otherwise noted.

Future Developments

For the latest information about Form 4506-C and its instructions, go to www.irs.gov and search IVES. Information about any recent developments affecting Form 4506-C (such as legislation enacted after we released it) will be posted on that page.

What's New. Form 4506-C includes the Client company requesting transcripts and increased the number of Wage and Income transcripts requests.

General Instructions

Caution: Do not sign this form unless all applicable lines have been completed.

Designated Recipient Notification. Section 6103(c) limits disclosure and use of return information received pursuant to the taxpayer's consent and holds the recipient subject to penalties for any unauthorized access, other use, or redisclosure without the taxpayer's express permission or request.

Taxpayer Notification. Section 6103(c) limits disclosure and use of return information provided pursuant to your consent and holds the recipient subject to penalties, brought by private right of action, for any unauthorized access, other use, or redisclosure without your express permission or request.

Purpose of form. Use Form 4506-C to request tax return information through an authorized IVES participant. You will designate an IVES participant to receive the information on line 5a.

Note: If you are unsure of which type of transcript you need, check with the party requesting your tax information.

Where to file. The IVES participant will fax Form 4506-C with the approved IVES cover sheet to their assigned Service Center.

Chart for ordering transcripts

If your assigned Service Center is:	Fax the requests with the approved coversheet to:
Austin Submission Processing Center	Austin IVES Team 844-249-6238
Kansas City Submission Processing Center	Kansas City IVES Team 844-249-8128
Ogden Submission Processing Center	Ogden IVES Team 844-249-8129

Specific Instructions

Line 1a/2a (if spouse is also requested). For IMF Requests: Enter the First, Middle Initial, and Last Name in the indicated fields. If all characters will not fit, please enter up to 12 for First name and 22 for Last name. For BMF Requests: Enter the company name in the Last Name field. If all characters will not fit, please enter up to 22.

Line 1b/2b (if spouse is also requested). Enter the social security number (SSN) or individual taxpayer identification number (ITIN) for the individual listed on line 1a including the dashes in the correct format, or enter the employer identification number (EIN) for the business listed on line 1a including the dashes in the correct format.

Line 1c/2c (if spouse is also requested). Enter your previous name as shown on your last filed tax return if different than line 1a.

Line 3. Enter your current address in the indicated fields. If you use a P.O. Box, include it and the number in the Current Address field.

Line 4. Enter the address shown on the last return filed if different from the address entered on line 3.

Note: If the addresses on lines 3 and 4 are different and you have not changed your address with the IRS, file Form 8822, Change of Address, or Form 8822-B, Change of Address or Responsible Party — Business, with Form 4506-C.

Line 5b. Enter up to 10 numeric characters to create a unique customer file number that will appear on the transcript. The customer file number cannot contain an SSN, ITIN or EIN. Completion of this line is not required.

Line 5c. Enter up to 10 alpha-numeric characters to create a unique identifier that will show in the mailbox file information. The unique identifier cannot contain an SSN, ITIN or EIN. Completion of this line is not required.

Note. If you use an SSN, we will not input the information and the customer file number or unique identifier will reflect a generic entry of "9999999999".

Line 5d. Enter the Client company name, address, and phone number in the indicated fields. A Client company receives the requested tax transcripts from the IVES participant. If the IVES participant is also the Client company, the IVES participant information should be entered on Line 5a and 5d. These fields cannot be blank or Not Applicable (NA).

Line 6. Enter only one tax form number (1040, 1065, 1120, etc.) per request for all line 6 transcripts request types.

Line 6a. Return Transcript includes most of the line items of a tax return as filed with the IRS. A tax return transcript does not reflect changes made to the account after the return is processed. Transcripts are only available for the following returns: Form 1040 series, Form 1065, Form 1120, Form 1120-H, Form 1120-L, and Form 1120-S. Return transcripts are available for the current year and returns processed during the prior 3 processing years.

Line 6b. Account Transcript contains information on the financial status of the account, such as payments made on the account, penalty assessments, and adjustments made by you or the IRS after the return was filed. Return information is limited to items such as tax liability and estimated tax payments. Account transcripts are available for most returns.

Line 6c. Record of Account provides the most detailed information as it is a combination of the Return Transcript and the Account Transcript. Available for current year and 3 prior tax years.

Line 7. The IRS can provide a transcript that includes data from these information returns: Form W-2, Form 1099 series, Form 1098 series, or Form 5498 series transcript. Enter up to three information return types. If no specific type is requested, all forms will be provided. State or local information is not included with the Form W-2 information. The IRS may be able to provide this transcript information for up to 10 years. Information for the current year is generally not available until the year after it is filed with the IRS. For example, Form W-2 information for 2016, filed in 2017, will likely not be available from the IRS until 2018. If you need Form W-2 information for retirement purposes, you should contact the Social Security Administration at 1-800-772-1213.

Line 8. Enter the end date of the tax year or period requested in mm dd yyyy format. This may be a calendar year, fiscal year or quarter. Enter each quarter requested for quarterly returns. Example: Enter 12/31/2018 for a calendar year 2018 Form 1040 transcript.



You must check the box in the signature area to acknowledge you have the authority to sign and request the information. The form will not be processed if unchecked.

Signature and date. Form 4506-C must be signed and dated by the taxpayer listed on line 1a and, if listed, 2a. The IRS must receive Form 4506-C within 120 days of the date signed by the taxpayer or it will be rejected. Ensure that all applicable lines, including lines 5a through 8, are completed before signing.

Authorized Representative. A representative can sign Form 4506-C for a taxpayer if the taxpayer has specifically delegated this authority to the representative on Form 2848, line 5a, and Form 2848 is attached to the Form 4506-C request. If you are Heir at Law, Next of Kin, or Beneficiary, you must be able to establish a material interest in the estate or trust. If Form 4506-C is signed by a representative, the Authorized Representative check box must be marked.

Electronic Signature. Only IVES participants that opt in to the Electronic Signature usage can accept electronic signatures. Contact the IVES participant for approval and guidance for electronic signatures. If the Form 4506-C is signed electronically, the Electronic Signature check box must be marked.

Individuals. Transcripts listed on line 6 may be furnished to either spouse if jointly filed. Signatures are required for all taxpayers listed on Line 1a and 2a.

Corporations. Generally, Form 4506-C can be signed by:

(1) an officer having legal authority to bind the corporation, (2) any person designated by the board of directors or other governing body, or (3) any officer or employee on written request by any principal officer and attested to by the secretary or other officer. A bona fide shareholder of record owning 1 percent or more of the outstanding stock of the corporation may submit a Form 4506-C but must provide documentation to support the requester's right to receive the information.

Partnerships. Generally, Form 4506-C can be signed by any person who was a member of the partnership during any part of the tax period requested on line 8.

All others. See section 6103(e) if the taxpayer has died, is insolvent, is a dissolved corporation, or if a trustee, guardian, executor, receiver, or administrator is acting for the taxpayer.

Documentation. For entities other than individuals, you must attach the authorization document. For example, this could be the letter from the principal officer authorizing an employee of the corporation or the letters testamentary authorizing an individual to act for an estate.

Privacy Act and Paperwork Reduction Act Notice. We ask for the information on this form to establish your right to gain access to the requested tax information under the Internal Revenue Code. We need this information to properly identify the tax information and respond to your request. You are not required to request any transcript; if you do request a transcript, sections 6103 and 6109 and their regulations require you to provide this information, including your SSN or EIN. If you do not provide this information, we may not be able to process your request. Providing false or fraudulent information may subject you to penalties.

Routine uses of this information include giving it to the Department of Justice for civil and criminal litigation, and cities, states, the District of Columbia, and U.S. commonwealths and possessions for use in administering their tax laws. We may also disclose this information to other countries under a tax treaty, to federal and state agencies to enforce federal nontax criminal laws, or to federal law enforcement and intelligence agencies to combat terrorism.

You are not required to provide the information requested on a form that is subject to the Paperwork Reduction Act unless the form displays a valid OMB control number. Books or records relating to a form or its instructions must be retained as long as their contents may become material in the administration of any Internal Revenue law. Generally, tax returns and return information are confidential, as required by section 6103.

The time needed to complete and file Form 4506-C will vary depending on individual circumstances. The estimated average time is:

Learning about the law or the form 10 min.
Preparing the form 12 min.
Copying, assembling, and sending the form to the IRS 20 min.

If you have comments concerning the accuracy of these time estimates or suggestions for making Form 4506-C simpler, we would be happy to hear from you. You can write to:

Internal Revenue Service
Tax Forms and Publications Division
1111 Constitution Ave. NW, IR-6526
Washington, DC 20224

Do not send the form to this address. Instead, see Where to file on this page.

» THIRD-PARTY AUTHORIZATION FORM

Loan Number: [REDACTED]

Complete and sign this Third Party Authorization form to authorize someone other than yourself to access your Mortgage Loan Account information. IMPORTANT: Once completed and signed, please mail or fax to:
Mail: Attention: Third Party Authorization | E-115-3 | 5151 Corporate Drive | Troy, MI 48098 Fax: 888-848-1071

Please **PRINT**

Section 1 - Your Information

First Name

Middle Name

Last Name

Last 4 Digits of Social Security Number

Best Phone Number

Section 2 - Authorized Third Party

Expiration date for authorization: ☐ Loan maturity or ☐ Provide Expiration Date: _____

(Note: If no date is selected, the authorization will be valid for two years from the date signed below)

Type of Authorization: ☐ Individual ☐ Company

Authorization Description: ☐ Realtor ☐ Attorney

☐ Appraiser ☐ Other: _____

Name (Please note: It is not necessary to list individual names for a company authorization.)

Address

City

State

Zip

Best Phone Number

Fax

Email

Section 3 - Your Authorization

The authorized third party can:

- Obtain loan details information by telephone
- Discuss payment arrangements with the Collections Department
- Discuss the Loss Mitigation application process
- Submit request to send documents that do not require a fee, such as a Transaction History Ledger, or an Original Appraisal. (can only be mailed to address of record)
- Submit request to re-send letter/package/document, such as a Monthly Statement, 1098, Escrow Analysis Disclosure, Rate/Payment, Change Notice, Loan Sale Transfer Notice, etc. (can only be mailed to address of record.)
- Request research to resolve matters

By signing this form, I authorize the loan servicer to provide loan information regarding the Mortgage Loan Account referenced above to the Authorized Party or to someone claiming to be the Authorized Party. I understand that this Third Party Authorization allows only for information to be provided by telephone and the actions described above. The loan servicer may reject this or any other Third Party Authorization or refuse to recognize any request for information from the Authorized Party. This Third Party Authorization shall remain in effect until I revoke this authorization or until it expires as indicated above. I or any other borrower on this loan may revoke this Third Party Authorization at any time in writing via fax or mail.

In the event your loan is transferred to a new servicer, the authorization established by this form will no longer be effective. Our liability/obligations remain to the customer and the presence of a representative should not create additional direct or derivative liability for the Bank.

Borrower Signature

Date

Co-borrower Signature

Date

EXHIBIT J

P.O. Box 5041
Troy, MI 48007-5041

Carlie Javier
675 VFW PKWY PMB 191
Chestnut Hill, MA 02467

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IF YOU ARE NOW ON ACTIVE MILITARY DUTY OR HAVE BEEN IN THE PRIOR TWELVE MONTHS, OR IF YOU ARE A DEPENDENT OF AN ACTIVE SERVICEMEMBER, PLEASE CONTACT OUR OFFICE AS YOU MAY BE ENTITLED TO PROTECTIONS UNDER THE SERVICEMEMBERS CIVIL RELIEF ACT.

November 6, 2025

VIA FIRST CLASS MAIL

Carlie Javier
37 Birch Hill Rd
Bridgewater, MA 02324

RE: Our File Number: 25-006241

Property Address: 37 Birch Hill Rd, Bridgewater, MA 02324

Dear Carlie Javier:

This law firm has been retained by M&T Bank regarding the mortgage which encumbers the above real property (the "Mortgage"). The Note evidencing the loan in the original principal amount of \$584,223.00 and the Mortgage are collectively called the "Mortgage Loan."

An attorney has reviewed information provided by our client and has been involved in the preparation of this letter.

According to the records of our client, your Mortgage Loan is in default. **As a result, the Mortgage Loan has been accelerated and M&T Bank has referred the matter to our office for further action.**

You have the right to reinstate the Mortgage Loan by paying all past due installments, late charges, delinquent taxes, insurance premiums, and costs and fees incurred in the foreclosure. To request reinstatement information, contact our Loan Resolution Department at (781) 790-7800.

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Orlans File No. 25-006241
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If you feel you may be eligible for such protections, you should contact both the servicer and Orlans Law Group PLLC immediately and forward a copy of the service member's military orders to:

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Attn: SCRA
Phone (781) 790-7800

M&T Bank
1 Fountain Plaza
Buffalo, New York 14203
Phone: 800-724-2224
ATTN: Loss Mitigation

Sincerely,
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675 VFW PKWY PMB 191
Chestnut Hill, MA 02467

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Phone: 800-724-2224
ATTN: Loss Mitigation

Sincerely,
Orlans Law Group PLLC

EXHIBIT K



SEN:	XXX-XX-0780
Birth Date:	
Last Name:	JAVIER
First Name:	CARLIE
Middle Name:	
Status Ac On:	Nov-30-2025
Certificate ID:	C459TJXXCJ86ZB0

NA	NA	No	NA

NA	NA	No	NA

NA	NA	No	NA

The DoD strongly supports the enforcement of the Servicemembers Civil Relief Act (50 USC App. § 3901 et seq, as amended) (SCRA) (formerly known as the Soldiers' and Sailors' Civil Relief Act of 1940). DMDC has issued hundreds of thousands of "does not possess any information indicating that the individual is currently on active duty" responses, and has experienced only a small error rate. In the event the individual referenced above, or any family member, friend, or representative asserts in any manner that the individual was on active duty for the active duty status date, or is otherwise entitled to the protections of the SCRA, you are strongly encouraged to obtain further verification of the person's status by contacting that person's Service. Service contact information can be found on the SCRA website's FAQ page (Q35) via this URL: <https://scra.dmdc.osd.mil/scra/#/faqs>. If you have evidence the person was on active duty for the active duty status date and you fail to obtain this additional Service verification, punitive provisions of the SCRA may be invoked against you. See 50 USC App. § 3921(c).

This response reflects the following information: (1) The individual's Active Duty status on the Active Duty Status Date (2) Whether the individual left Active Duty status within 367 days preceding the Active Duty Status Date (3) Whether the individual or his/her unit received early notification to report for active duty on the Active Duty Status Date.

More information on "Active Duty Status"

Active duty status as reported in this certificate is defined in accordance with 10 USC § 101(d) (1). Prior to 2010 only some of the active duty periods less than 30 consecutive days in length were available. In the case of a member of the National Guard, this includes service under a call to active service authorized by the President or the Secretary of Defense under 32 USC § 502(f) for purposes of responding to a national emergency declared by the President and supported by Federal funds. All Active Guard Reserve (AGR) members must be assigned against an authorized mobilization position in the unit they support. This includes Navy Training and Administration of the Reserves (TARs), Marine Corps Active Reserve (ARs) and Coast Guard Reserve Program Administrator (RPAs). Active Duty status also applies to a Uniformed Service member who is an active duty commissioned officer of the U.S. Public Health Service or the National Oceanic and Atmospheric Administration (NOAA Commissioned Corps).

Coverage Under the SCRA is Broader in Some Cases

Coverage under the SCRA is broader in some cases and includes some categories of persons on active duty for purposes of the SCRA who would not be reported as on Active Duty under this certificate. SCRA protections are for Title 10 and Title 14 active duty records for all the Uniformed Services periods. Title 32 periods of Active Duty are not covered by SCRA, as defined in accordance with 10 USC § 101(d)(1).

Many times orders are amended to extend the period of active duty, which would extend SCRA protections. Persons seeking to rely on this website certification should check to make sure the orders on which SCRA protections are based have not been amended to extend the inclusive dates of service. Furthermore, some protections of the SCRA may extend to persons who have received orders to report for active duty or to be inducted, but who have not actually begun active duty or actually reported for induction. The Last Date on Active Duty entry is important because a number of protections of the SCRA extend beyond the last dates of active duty.

Those who could rely on this certificate are urged to seek qualified legal counsel to ensure that all rights guaranteed to Service members under the SCRA are protected

WARNING: This certificate was provided based on a last name, SSN/date of birth, and active duty status date provided by the requester. Providing erroneous information will cause an erroneous certificate to be provided.



Status Report Pursuant to Servicemembers Civil Relief Act

SEN: XXX-XX-6556
Birth Date:
Last Name: JAVIER
First Name: ENRIQUE
Middle Name:
Status Ac Of: Nov-30-2025
Certificate ID: BY3W0WG1ZFMK3KW

NA	NA	No	NA
This response is based on the information provided by the individual, and is not a guarantee of accuracy.			

NA	NA	No	NA
This response is based on the information provided by the individual, and is not a guarantee of accuracy.			

NA	NA	No	NA
This response is based on the information provided by the individual, and is not a guarantee of accuracy.			

Upon completing this data banks of the Department of Defense Monitor Data Center. Based on the information that you provided. On above to the status of the individual on the military duty status data as to all branches of the Uniformed Services (Army, Navy, Marine Corps, Air Force, Space Force, NOAA, Pacific Health and Coast Guard). This status includes information on a Servicemember or individual's military status and is not a guarantee of accuracy. Active Only.

The DoD strongly supports the enforcement of the Servicemembers Civil Relief Act (50 USC App. § 3901 et seq, as amended) (SCRA) (formerly known as the Soldiers' and Sailors' Civil Relief Act of 1940). DMDC has issued hundreds of thousands of "does not possess any information indicating that the individual is currently on active duty" responses, and has experienced only a small error rate. In the event the individual referenced above, or any family member, friend, or representative asserts in any manner that the individual was on active duty for the active duty status date, or is otherwise entitled to the protections of the SCRA, you are strongly encouraged to obtain further verification of the person's status by contacting that person's Service. Service contact information can be found on the SCRA website's FAQ page (Q35) via this URL: <https://scra.dmdc.osd.mil/scra/#/faqs>. If you have evidence the person was on active duty for the active duty status date and you fail to obtain this additional Service verification, punitive provisions of the SCRA may be invoked against you. See 50 USC App. § 3921(c).

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